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SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF SUFFOLK

-----x

DIANE C. DESOUSA AND THOMAS E.

DESOUSA,

Plaintiffs,

- against -

RICHARD A. CALVAGNO II AND PATRICK

J. KARCHER,

Defendants.

Index No.: 600371/2021

-----x

1225 Franklin Avenue
Garden City, New York

May 11, 2023
12:56 p.m.

Examination Before Trial of the
Defendant RICHARD A. CALVAGNO II, pursuant to
Notice, before Elizabeth Scheibe, a Notary
Public of the State of New York.

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A P P E A R A N C E S:

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-and-

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A P P E A R A N C E S: (Continued)

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NOT PRESENT

ALSO PRESENT:

THOMAS E. DESOUSA

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.1 Objections at Depositions

(a) Objections in general. No objections shall be made at a deposition except those, pursuant to subdivision (b), (c) or (d) of Rule 3115 of the Civil Practice Law and Rules, would be waived if not interposed, and except in compliance with subdivision (e) of such rule. All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the C.P.L.R.

(b) Speaking objections restricted. Every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. Except to the extent permitted by C.P.L.R. Rule 3115 or by this rule, during the course of the examination persons in attendance shall not make statements or comments that interfere with the questioning.

221.2 Refusal to answer when objection is made

A deponent shall answer all questions at a deposition, except (i) to preserve a privilege or right of confidentiality, (ii) to enforce a limitation set forth in an order of the court, or (iii) when the question is plainly improper and would, if answered, cause significant prejudice to any person. An attorney shall not direct a deponent not to answer except as provided in C.P.L.R. Rule 3115 or this subdivision. Any refusal to answer or direction not to answer shall be accompanied by a succinct and clear statement of the basis therefor. If the deponent does not answer a question, the examining party shall have the right to complete the remainder of the deposition.

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.3 Communication with the deponent

An attorney shall not interrupt the deposition for the purpose of communicating with the deponent unless all parties consent or the communication is made for the purpose of determining whether the question should not be answered on the grounds set forth in section 221.2 of these rules and, in such event, the reason for the communication shall be stated for the record succinctly and clearly.

IT IS FURTHER STIPULATED AND AGREED that the transcript may be signed before any Notary Public with the same force and effect as if signed before a clerk or a Judge of the court.

IT IS FURTHER STIPULATED AND AGREED that the examination before trial may be utilized for all purposes as provided by the C.P.L.R.

IT IS FURTHER STIPULATED AND AGREED that all rights provided to all parties by the C.P.L.R. cannot be deemed waived and the appropriate sections of the C.P.L.R. shall be controlling with respect hereto.

IT IS FURTHER STIPULATED AND AGREED by and between the attorneys for the respective parties hereto that a copy of this examination shall be furnished, without charge, to the attorneys representing the witness testifying herein.

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R I C H A R D A . C A L V A G N O I I ,
called as a witness, having been
duly sworn by a Notary Public, was
examined and testified as follows:

EXAMINATION BY

MR. INDUSI:

Q. Please state your full name for
the record.

A. Richard A. Calvagno II.

Q. Please state your home address
for the record.

A. 320 Grand Central Avenue,
Amityville, New York 11701.

Q. Good morning, Mr. Calvagno. My
name is Joseph Indusi. As you probably heard
by now already a few times, I will be asking
you some questions today about a lawsuit in
connection with the Desousas; Tom and Diane.

Just a few ground rules before we
begin. As the court reporter indicated here
already, try not to talk over me. I am going
to ask you a question, the question is out
there, give an answer. The answer has to
verbal. It cannot be head nods or head

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1 R. A. CALVAGNO II
2 shakes. Even though you may think you know
3 where my question is going, let me get the
4 complete question out because this a cold
5 record. There is no videocamera here. It is
6 a type-written record. Let me get my question
7 out and then you can answer and I will ask my
8 next question. I promise I will do the same
9 to try not to ask questions over your answers.

10 A. Sure.

11 Q. If you don't understand any
12 questions just ask me to rephrase. Your
13 attorney may object. I am happy to rephrase
14 the question or clarify anything you don't
15 understand.

16 If you need a break at any time,
17 I am happy to give you a break. I didn't
18 mention that I have a four o'clock hard stop,
19 but I am happy to give you break. My only
20 rule with the break is that you answer the
21 question that is out and then we can take a
22 break if you need to speak to your attorney or
23 whatever you need to do.

24 A. Okay.

25 Q. Have you taken any medication

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1 R. A. CALVAGNO II

2 today?

3 A. No. Well, what kind of
4 medication?

5 Q. Any medication that would affect
6 your ability to testify truthfully?

7 A. No.

8 Q. Have you taken any alcohol or
9 mind-altering drugs that would affect your
10 ability to testify truthfully?

11 A. No.

12 Q. Is there anything that in your
13 mind you think could affect your ability to
14 testify truthfully here today?

15 A. No.

16 Q. Your full name is Richard A.
17 Calvagno II; is that correct?

18 A. Yes.

19 Q. Do you go by any other names?

20 A. No.

21 Q. What is your date of birth?

22 A. 11/19/74.

23 Q. Do you have a driver's license?

24 A. Yes.

25 Q. What state issues that driver's

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1 R. A. CALVAGNO II

2 license?

3 A. New York.

4 Q. Did you review any documents or
5 materials in preparation for today's
6 deposition?

7 A. No.

8 Q. You said you currently live at
9 320 Grand Central Avenue?

10 A. Yes.

11 Q. That's in Amityville?

12 A. Yes.

13 Q. Who do you live with at 320 Grand
14 Central Avenue?

15 A. Anthony Crimi.

16 Q. Do you live with anyone else at
17 320 Grand Central Avenue in Amityville?

18 A. No.

19 Q. Who is Anthony Crimi to you?

20 A. He's my boyfriend.

21 Q. Are you currently married?

22 A. No.

23 Q. Have you ever been married in the
24 past?

25 A. No.

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1 R. A. CALVAGNO II

2 Q. Have you ever been a party to a
3 lawsuit before?

4 A. I believe so.

5 Q. Do you recall what --

6 A. Yes, I was.

7 Q. Do you recall what the subject
8 matter of that lawsuit was?

9 A. Breach of contract with a bank.

10 Q. Could you be a little more
11 specific?

12 A. It was a breach of contract
13 lawsuit that my lawyer -- attorney filed for a
14 loan that was not done correctly.

15 Q. Would it be fair to say that you
16 were the Plaintiff in that lawsuit?

17 A. I -- yes, I was.

18 Q. Where was that lawsuit pending?

19 A. Suffolk County.

20 Q. Now you understand in this case
21 you are a Defendant, correct?

22 A. Correct.

23 Q. Have you ever been sued or a
24 Defendant in any other cases?

25 A. No.

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1 R. A. CALVAGNO II

2 Q. Have you ever given sworn
3 testimony before or is today your first time?

4 A. I have done a deposition before.

5 Q. In what cases have you testified
6 in a deposition?

7 A. For my breach of contract case.

8 Q. Other than the breach of contract
9 case have you given depositions in any other
10 cases?

11 A. No.

12 Q. What is your highest level of
13 education?

14 A. Some college.

15 Q. Where did you attend college?

16 A. Nassau Community College.

17 Q. What was that for?

18 A. I don't remember.

19 Q. How long ago was that?

20 A. A long time ago.

21 Q. Approximately?

22 A. 20 years ago.

23 Q. And you did not complete or
24 receive any degree --

25 A. No.

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1 R. A. CALVAGNO II

2 Q. -- from Nassau Community College?

3 A. Correct.

4 Q. Do you have any professional
5 licenses that are issued by any government
6 agency or body other than a New York driver's
7 license?

8 A. No.

9 Q. Are you presently employed?

10 A. Yes.

11 Q. Where?

12 A. C & R Automotive.

13 Q. Where is that located?

14 A. In Hicksville.

15 Q. What is the nature of your
16 employment with C & R Automotive?

17 A. Office manager.

18 Q. What are your job duties as
19 office manager?

20 A. Run the office, run the drivers.

21 Q. What does C & R Automotive do?

22 A. Auto body shop and towing
23 company.

24 Q. Do you have any ownership
25 interest in C & R Automotive?

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1 R. A. CALVAGNO II

2 A. No.

3 Q. Who is your boss at C & R

4 Automotive?

5 A. Mike.

6 Q. What is Mike's last name?

7 A. I don't know if he wants me to
8 give it out. He does not give it out to
9 customers either. I am not going to give it
10 out.

11 MR. INDUSI: I am going to
12 leave a blank spot in the transcript.
13 I don't think that's a viable
14 objection to not give an answer that
15 his boss does not want his last name
16 given out.

17 I am going to direct and have
18 this question marked with a blank and
19 when we get the transcript to have it
20 filled in.

21 (INSERT)

22 MS. HAMID: That's fine.

23 MR. INDUSI: If you're going
24 to make an objection we can mark that
25 for a ruling as well.

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1 R. A. CALVAGNO II

2 I don't think that's a legal
3 objection.

4 Q. When did you start working at
5 C & R Automotive?

6 A. About nine years ago.

7 Q. Have you been with C & R
8 Automotive consistently throughout that nine
9 years?

10 A. Yes.

11 Q. Has C & R Automotive been known
12 by any other name?

13 A. They have a d/b/a.

14 Q. What --

15 A. AAAA1 Towing. Hicksville
16 Collision.

17 Just out of curiosity, can I ask
18 a question?

19 Q. It's not really your turn to --

20 A. I don't think my job information
21 has anything to do with this case. I am not
22 going to keep giving my boss's information
23 out.

24 MR. INDUSI: If we want to
25 stop and we want to call the judge

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1 R. A. CALVAGNO II
2 again -- this is basic background
3 information here, which is standard
4 in every deposition that I have ever
5 done. I am not really getting all
6 that detailed here, but we can call
7 the judge if this is going to be a
8 consistent -- if we are going to hit
9 all these roadblocks.

10 If you want to leave a blank
11 for his employer's name and talk to
12 him after. If you want to take a
13 break and talk to him. These are not
14 objectionable questions.

15 THE WITNESS: I will answer
16 anything to do with the case. My job
17 and my boss have nothing to do with
18 this case.

19 MS. HAMID: Just answer this
20 question.

21 Q. I have Triple A1 Towing (sic) and
22 I have Hicksville Collision. Are there any
23 other --

24 A. I am not sure.

25 Q. You say you're not sure. You've

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1 R. A. CALVAGNO II

2 been an office manager there for nine years?

3 A. Yes.

4 Q. Do you collect checks from
5 customers that pay?

6 A. I don't work in the body shop. I
7 work in the towing part of it only.

8 Q. So your job duties involve towing
9 only?

10 A. Yes.

11 Q. You testified earlier that you
12 run the office and run the drivers; is that
13 correct?

14 A. Correct.

15 Q. How does that work; a call comes
16 in for a tow and you dispatch the drivers?

17 A. Correct.

18 Q. Do you do any invoicing or
19 billing?

20 A. If people come and pick up cars,
21 yes.

22 Q. Throughout your time there have
23 you ever seen any checks made to any other
24 entities other than C & R Automotive, Triple
25 A1 Towing or Hicksville Collision?

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1 R. A. CALVAGNO II

2 MS. HAMID: I am going to
3 object. The scope of this case has
4 nothing do with his employment.

5 The case is near the property
6 of these two parties has nothing to
7 do with his employment.

8 He has answered the basic
9 information regarding where he works,
10 the scope of his duties and how long
11 he has been there for.

12 MR. INDUSI: So if you want
13 to -- your objection is noted for the
14 record. I don't believe that's a
15 basis to direct him not to answer the
16 question.

17 MS. HAMID: I am noting my
18 objection.

19 MR. INDUSI: Do I have an
20 answer for that question?

21 THE WITNESS: What was the
22 question?

23 MR. INDUSI: Can you read it
24 back.

25 (Requested testimony was

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1 R. A. CALVAGNO II

2 read.)

3 A. No.

4 Q. What is the physical address of C
5 & R Automotive?

6 A. Where I work?

7 Q. Yes.

8 A. 34 Charlotte Avenue, Hicksville,
9 New York 11801.

10 Q. Is that the physical location of
11 the --

12 MR. INDUSI: Withdrawn.

13 Q. Are there any other physical
14 locations for C & R Automotive or Triple A1
15 Towing or Hicksville Collision?

16 A. Yes.

17 Q. The location for 34 Charlotte
18 Avenue, is that Triple A1 Towing?

19 A. Yes. It's AAAA1.

20 Q. AAAA1, I'm sorry.

21 When you go to work every day for
22 the last nine years where you report to work
23 is 34 Charlotte Avenue in Hicksville?

24 A. Correct.

25 Q. Prior to your employment at C & R

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1 R. A. CALVAGNO II

2 where did you work?

3 A. I did not work. I took some time
4 off.

5 Q. Approximately how long?

6 A. I don't remember. A year or two
7 maybe.

8 Q. Have you ever been convicted of a
9 crime?

10 A. I prefer not to answer that.

11 MR. INDUSI: Can you direct
12 him to answer that.

13 MS. HAMID: You can answer.

14 THE WITNESS: I need to speak
15 to my attorney first before I answer
16 the question.

17 MR. INDUSI: There is a
18 question on the table. I would ask
19 that --

20 THE WITNESS: I'd like to
21 speak to my attorney in private.

22 MR. INDUSI: The record stands
23 on its own. That's fine.

24 (A recess was taken.)

25 MR. INDUSI: Can you read back

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1 R. A. CALVAGNO II

2 the open question.

3 (Requested testimony was
4 read.)

5 A. Yes.

6 Q. In what state?

7 A. New York.

8 Q. Have you ever been convicted
9 outside of New York?

10 A. No.

11 Q. What crime have you been
12 convicted of in the State of New York?

13 A. I don't remember the actual
14 crime. It was about 10 years ago.

15 Q. Do you know what courthouse you
16 went to?

17 A. Mineola.

18 Q. Do you recall the subject matter,
19 not the actual charge, of the crime for which
20 you were convicted?

21 A. What do you mean?

22 Q. If you don't remember the exact
23 -- you're saying you don't remember the exact
24 charge.

25 I am saying do you remember the

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1 R. A. CALVAGNO II

2 subject matter of the charge in which you were
3 convicted?

4 A. As far as like why --

5 Q. Yes.

6 A. -- I was arrested?

7 Q. I am not asking about arrests. I
8 am asking the actual conviction, the subject
9 matter of the conviction?

10 A. DWI charge in '09.

11 Q. 2009 DWI conviction in Mineola.
12 Other than the DWI conviction in Mineola -- I
13 am not going to hold you to 2009 --
14 approximately 2009, have you ever been
15 convicted of any other crimes?

16 A. Yes.

17 Q. What other crime?

18 A. Drugs.

19 Q. When?

20 A. Within the past 10 -- about 10
21 years ago sometime roughly.

22 Q. Do you recall what type of drugs?

23 A. Cocaine.

24 Q. Do you remember what courthouse
25 that was in?

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1 R. A. CALVAGNO II

2 A. Mineola.

3 Q. Other than the DWI and the
4 conviction for drugs in Mineola, were you
5 convicted of any other crimes?

6 A. No.

7 Q. Do you currently use any social
8 media applications?

9 A. Yes.

10 Q. Do you use Instagram?

11 A. Yes.

12 Q. What is your profile name on
13 Instagram?

14 A. I have no idea what it is
15 honestly.

16 Q. Would looking at your phone
17 refresh your recollection?

18 A. Probably.

19 Q. Take a minute to look at your
20 phone.

21 A. It's my name.

22 Q. Your Instagram user name is
23 Richard Calvagno?

24 A. Yes, Rich Calvagno.

25 Q. Do you use Facebook?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. What is your profile on Facebook?

4 A. My name.

5 Q. And that's Richard Calvagno?

6 A. Yes.

7 Q. Do you use any other social media
8 applications other than Instagram and
9 Facebook?

10 A. No.

11 Q. Now you mentioned you live with
12 Anthony Crimi?

13 A. Correct.

14 Q. Do you and Anthony Crimi or just
15 you own the home located at 320 Grand Central
16 Avenue?

17 A. Me and somebody else.

18 Q. Who is the other person that owns
19 this home at 320 Grand Central Avenue in
20 Amityville?

21 A. Patrick Karcher.

22 Q. Who is Patrick Karcher?

23 A. A friend.

24 Q. Just to clarify, I know you said
25 the only two people that live there are you

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1 R. A. CALVAGNO II

2 and Anthony Crimi.

3 Patrick Karcher does not live at
4 320 Grand Central Avenue; is that correct?

5 A. He doesn't.

6 Q. Has Patrick Karcher ever lived at
7 320 Grand Central Avenue in Amityville?

8 A. No, he has not.

9 Q. Mr. Desousa, who is sitting here
10 today obviously, and his wife Diane Desousa
11 live directly across the street from you on
12 Grand Central Avenue in Amityville, correct?

13 A. Correct.

14 Q. How long you have you lived at
15 320 Grand Central Avenue?

16 A. Roughly about six years.

17 Q. Where did you live before there?

18 A. In Island Park.

19 Q. What was the address in Island
20 Park?

21 A. 212 California Place South.

22 Q. Now, where you and Mr. Desousa
23 live on Grand Central Avenue in Amityville is
24 towards the end of the road; is that correct?

25 A. Yes.

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1 R. A. CALVAGNO II

2 Q. Approximately four houses between
3 your houses and the end of the block; is that
4 correct?

5 A. Yes.

6 Q. Of course, both of you have
7 backyards on the water?

8 A. Yes.

9 Q. Great South Bay?

10 A. Yes.

11 Q. So Grand Central Avenue in
12 Amityville is essentially a peninsula street
13 that goes down and sticks out into the Great
14 South Bay; there is water on both sides,
15 correct?

16 A. Yes.

17 Q. To that end, Grand Central Avenue
18 is a dead end naturally?

19 A. Naturally.

20 Q. Now, six years ago when you moved
21 into 320 Grand Central Avenue did you have any
22 relationship with Thomas Desousa or Diane
23 Desousa?

24 A. After I moved in?

25 Q. Yes.

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. How would you characterize your
4 relationship with Tom Desousa and Diane
5 Desousa during the first year that you lived
6 at 320 Grand Central Avenue in Amityville?

7 A. It was normal. It was like a
8 normal neighbor relationship.

9 Q. Did you ever have Tom Desousa and
10 Diane Desousa over to your home for any social
11 gatherings during the first year you lived at
12 320 Grand Central Avenue in Amityville?

13 A. Yes.

14 Q. Approximately how many times
15 during the first year that you lived at 320
16 Grand Central Avenue in Amityville?

17 A. Probably once. Maybe twice.

18 Q. How about during the second year
19 you lived in Grand Central Avenue?

20 A. Yes.

21 Q. Approximately?

22 A. One to two times.

23 Q. And the third year that you lived
24 in Grand Cental --

25 A. Probably also one or two times.

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1 R. A. CALVAGNO II

2 Q. I am going now from -- I am going
3 to ask you a question -- at what point did
4 your relationship in your mind change with Tom
5 Desousa and Diane Desousa?

6 A. When I got the lawsuit served to
7 me.

8 Q. I believe the lawsuit was served
9 in --

10 A. 2021.

11 Q. Prior to 2021, prior to the date
12 the lawsuit was served in 2021, was there any
13 other event that sticks out in your mind that
14 caused your relationship with are Mr. Desousa
15 and Diane Desousa to not be the normal
16 neighborly relationship when you first moved
17 in?

18 A. Not that I can recall.

19 Q. Have you ever been over to the
20 Desousa household?

21 A. No.

22 MR. INDUSI: I am going to
23 mark this as Plaintiff's Exhibit 1.

24 (Plaintiff's Exhibit 1,
25 Photograph, was marked for

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1 R. A. CALVAGNO II

2 identification.)

3 MR. INDUSI: I am showing the
4 witness what has been marked as
5 Plaintiff's 1. Take a look at it and
6 when you're done looking at it I am
7 going to ask you some questions about
8 the document.

9 THE WITNESS: Okay.

10 Q. First, do you recognize what this
11 appears to be?

12 A. Yes.

13 Q. What do you recognize it to be?

14 A. A picture from my Ring doorbell.

15 Q. This is -- and your Ring doorbell
16 is located and positioned on the front of your
17 house located at 320 Grand Central Avenue in
18 Amityville?

19 A. Yes.

20 Q. We are looking at what is across
21 the street from your home, which is the home
22 of the Desousas, Tom and Diane, the Plaintiffs
23 in this case, correct?

24 A. Yes.

25 Q. In the driveway, in your driveway

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1 R. A. CALVAGNO II

2 there are three vehicles; is that correct?

3 A. Yes.

4 Q. Whose vehicles are those?

5 A. Two of them are mine and one is
6 Anthony's.

7 Q. I will let you tell me. I am
8 going to hand the witness a marker and I'd ask
9 that you circle your two vehicles and you can
10 label them A and B for the record.

11 A. (Witness complies.)

12 Q. This looks like a Dodge Charger
13 Hellcat, correct?

14 A. Yes.

15 Q. And it looks like a GMC 2500?

16 A. Yes.

17 Q. Is it a 2500?

18 A. Yes.

19 Q. I assume Mr. Crimi's vehicle is
20 the light-colored sedan?

21 A. Correct.

22 Q. Now, this picture was taken and
23 actually provided by your attorney to Mr.
24 Cuomo. It's entitled Calvagno August 2, 2021,
25 open windows at 6:30 a.m. MP4.

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1 R. A. CALVAGNO II

2 Do you recognize the title of
3 this video clip? This is a still from that
4 video clip.

5 A. Yes.

6 Q. Is this -- this is the vehicles
7 and the general appearance of the front of
8 your house and Mr. Desousa's house on
9 August 2, 2021, correct?

10 A. Correct.

11 Q. Has it changed in any substantial
12 way between August 2, 2021, and today?

13 A. I have a bigger driveway.

14 Q. What happened with the driveway?

15 A. I enlarged it.

16 Q. Did you enlarge it to the south
17 or to the north?

18 A. To the north.

19 Q. As we know, one of the issues in
20 this case is your vehicle, which you've marked
21 as A I believe, the Dodge Charger or Hellcat.

22 Is it a Charger or is it a
23 Hellcat or is it one in the same?

24 A. One in the same. Charger Hellcat
25 addition.

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1 R. A. CALVAGNO II

2 Q. What makes a car a Hellcat versus
3 a regular Charger?

4 A. The engine.

5 Q. What makes a Charger a Hellcat;
6 you said --

7 A. Engine.

8 Q. Is it more than just the engine?
9 Does it have better suspension, better brakes,
10 all of the above?

11 A. Yes.

12 Q. It would be like the high-end
13 version --

14 A. Correct.

15 Q. -- of a stock car?

16 A. Correct.

17 Q. Is there a horsepower rating for
18 a car like this?

19 A. 707.

20 Q. Do you now what the zero-to-60
21 is?

22 A. Not off the top of my head.

23 MR. INDUSI: Off the record.

24 (A discussion was held off the
25 record.)

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1 R. A. CALVAGNO II

2 Q. And that's a stock 770?

3 A. 707.

4 Q. 707. That's stock from Dodge?

5 A. Bone stock. The car is from

6 Dodge.

7 Q. And your testimony is you did not
8 make any modifications to this vehicle?

9 A. No, I have not.

10 Q. That's both -- you never took the
11 car anywhere to be modified?

12 A. Correct.

13 Q. And you did not personally make
14 any modifications?

15 A. Correct.

16 Q. When did you purchase this
17 vehicle?

18 A. It was purchased in 2020 I think.

19 Q. You purchased it new; you were
20 the original owner?

21 A. It was a company car.

22 Q. It was a car that was purchased
23 for --

24 MR. INDUSI: Withdrawn.

25 Q. Is it your vehicle or is it a

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1 R. A. CALVAGNO II

2 C & R Automotive vehicle?

3 A. It's in my name. C & R was
4 paying for it.

5 Q. Did you pick the vehicle out or
6 did C & R pick the vehicle out?

7 A. I picked the vehicle out.

8 Q. I assume you used the pickup
9 truck as well for work or whatever --

10 A. No.

11 (Speaking simultaneously.)

12 Q. The car is in your name. When
13 you purchased the vehicle was it new or was it
14 preowned?

15 A. Purchased new.

16 Q. Where did you purchase the
17 vehicle?

18 A. Westbury Jeep Chrysler Dodge.

19 Q. Does C & R do any work for
20 Westbury Jeep Chrysler Dodge?

21 A. Yes.

22 Q. What type of work?

23 A. All of their towing and body
24 work.

25 MR. INDUSI: I want to show

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1 R. A. CALVAGNO II
2 you a letter that I ask be marked as
3 Plaintiff's 2.

4 (Plaintiff's Exhibit 2,
5 Letter, was marked for
6 identification.)

7 MR. INDUSI: I am showing the
8 witness a letter. Take a look at it
9 and let me know when you are done.

10 THE WITNESS: Okay.

11 Q. Do you recognize that letter?

12 A. Yes.

13 Q. Did you procure that letter in
14 connection with this litigation?

15 A. Yes.

16 Q. And the letter, in sum and
17 substance, indicates that you own a 2019 Dodge
18 Charger Hellcat addition and had it
19 essentially factory supplied in stock?

20 A. Correct.

21 Q. Who is Steve Gargulo?

22 A. He's the service director at
23 Westbury Jeep Chrysler Dodge.

24 Q. Other than a relationship with C
25 & R Automotive, do you have any personal

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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35

1 R. A. CALVAGNO II

2 relationship with Steve Gargulo?

3 A. Just work. That's it.

4 Q. You do deal with Steve Gargulo in
5 connection with your job duties at C & R
6 Automotive?

7 A. Correct.

8 Q. When was the last time you had
9 the Charger inspected?

10 A. Last year.

11 MR. INDUSI: I want to show
12 you a picture to be marked as
13 Plaintiff's 3.

14 (Plaintiff's Exhibit 3,
15 Photograph, was marked for
16 identification.)

17 MR. INDUSI: I am showing the
18 witness a picture, Plaintiff's 3.

19 Q. Is that a picture of your vehicle
20 in your driveway?

21 A. Yes.

22 Q. Does that vehicle have tinted
23 windows?

24 A. Yes.

25 Q. Do you know what degree of tint

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1 R. A. CALVAGNO II

2 is on that car?

3 A. 20 percent.

4 Q. That's on all four windows?

5 A. Yes.

6 Q. And the rear, correct?

7 A. Yes.

8 Q. Does that car have a front plate?

9 A. Nope.

10 Q. Sitting here today it still does
11 not have a front plate, correct?

12 A. Nope. If you were a cop would
13 you write me a ticket?

14 Q. I am not going to write you a
15 ticket. I am just asking you questions.

16 A. Irrelevant.

17 Q. I don't think it's irrelevant.
18 They are fair questions.

19 Have you ever driven your Hellcat
20 at a high rate of speed down Grand Central
21 Avenue in the year of 2021?

22 A. Define high rate.

23 Q. Do you know what the posted speed
24 limit is on Grand Central Avenue in
25 Amityville?

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1 R. A. CALVAGNO II

2 A. I think 30.

3 Q. Have you ever driven the Hellcat
4 at a speed greater than 30-miles per hour on
5 Grand Central Avenue in Amityville?

6 A. I have no idea.

7 Q. Have you ever driven the Hellcat
8 at a high rate of speed over the posted speed
9 limit on Grand Central Avenue in 2022?

10 A. I don't really keep track of my
11 speeds.

12 Q. Have you ever driven the Hellcat
13 at a high rate of speed in excess of the
14 posted speed limit on Grand Central Avenue in
15 2023?

16 A. The same answer.

17 MR. INDUSI: I would like to
18 play a video.

19 John, it's in Calvagno
20 deposition exhibits.

21 Just for the record, the file
22 name is MVI Racing 90 decibels
23 2011 -- I think that's going to be
24 2022 -- that was provided in
25 discovery from Plaintiffs to

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1 R. A. CALVAGNO II

2 Defendant -- that's MP4.

3 This is the video, the file
4 name.

5 Counsel, you did receive this
6 video in discovery, correct?

7 MS. HAMID: I have to see the
8 video. There were quite a few.

9 MR. INDUSI: It's labeled MVI
10 racing 90 decibels February 11, 2022.

11 Let's pause there.

12 Q. Mr. Calvagno --

13 MR. CUOMO: Can we go back --
14 (Speaking simultaneously.)

15 Q. Mr. Calvagno, do you recognize
16 that person that came out of your house who
17 looks to be standing between your Hellcat and
18 the pickup?

19 A. It looks like me.

20 MR. INDUSI: We can continue
21 to play.

22 (Playing video.)

23 MR. INDUSI: Pause it.

24 Q. Just for the record, that's the
25 enlarged driveway, right?

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1 R. A. CALVAGNO II

2 A. Yes.

3 MR. INDUSI: Continue.

4 (Playing video.)

5 MR. INDUSI: Pause it, John.

6 Q. Just a quick question. Do you
7 know which window this video was taken out of
8 from Mr. Desousa's house?

9 A. Yes.

10 Q. I am going to hand you -- if you
11 could look at Plaintiff's 1. If you could
12 just circle the window on Mr. Desousa's house
13 that this video was taken from.

14 A. Okay.

15 Q. You can mark that with a C for
16 the record.

17 A. (Witness complies.)

18 Q. You did get in the car, right?
19 Now the car is just sitting in the driveway --

20 A. Yes.

21 MR. INDUSI: Play the video.

22 (Playing video.)

23 MR. INDUSI: Stop the video.

24 Q. Did you hear the sound of the
25 acceleration on the video?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. Is that the sound of acceleration
4 from your vehicle?

5 A. I have no idea.

6 Q. Does that sound like the sound
7 that your vehicle makes when you accelerate
8 the car?

9 A. It could.

10 Q. When you say "it could," do you
11 mean to say that your car is capable of
12 producing a sound of exhaust like that
13 depicted in the video?

14 A. I am sure it is.

15 Q. When you say you are "sure it
16 is," you are sure it's capable of --

17 A. I am sure it is.

18 Q. But sitting here today watching
19 the video you're saying you don't know if that
20 is in fact the sound of your actual car on
21 that date?

22 A. No, I don't.

23 Q. Now, you were driving the car
24 when you pulled -- when the car pulled out of
25 the driveway, correct?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. And you were alone in the vehicle
4 when you left your driveway, correct?

5 A. Yes.

6 Q. The pickup truck that you moved
7 in the video, which was also in the driveway
8 in Plaintiff's 1, is that your vehicle or is
9 that a work vehicle as well?

10 A. That's mine.

11 Q. And the condition of the car, the
12 Dodge Hellcat, the window guards, the tints,
13 that's all the way the car came when you
14 purchased the car, correct?

15 A. No.

16 Q. So you added those?

17 A. Yes.

18 Q. When did you add those?

19 A. When I bought the car.

20 Q. Approximately 2020?

21 A. Yeah.

22 Q. Other than those modifications
23 you made no performance modifications to the
24 car?

25 A. Correct.

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1 R. A. CALVAGNO II

2 Q. Does the Dodge Charger have a
3 remote start in it?

4 A. Yes.

5 Q. How long does the car run once
6 you activate the remote start?

7 A. I believe 12 minutes. Don't
8 quote me on that.

9 MR. INDUSI: Approximate is
10 fine. I am not looking to hold you
11 to that timeframe at all.

12 I want to ask you some
13 questions about the videos and some
14 of the discovery you turned over to
15 the Plaintiff in this case.

16 Specifically, we will start
17 with I guess this August 2, 2021,
18 video of Mr. Desousa walking down the
19 street.

20 It looks like a Ring camera
21 video. Do you want to pull that up.

22 MR. CUOMO: Are you done with
23 this one?

24 MR. INDUSI: I am.

25 MR. CUOMO: What is the date?

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1 R. A. CALVAGNO II

2 MR. INDUSI: There should be
3 the discovery -- this should be
4 August 2, 2021. I believe there are
5 two videos of Mr. Desousa walking
6 down the street.

7 MR. CUOMO: Calvagno-August 2,
8 2021, Plaintiff walking MP4.

9 MR. INDUSI: Let's play that
10 for the witness.

11 (Playing video.)

12 MR. INDUSI: This video, for
13 the record, has a marking of Calvagno
14 August 2, 2022, on the bottom. It's
15 a Ring camera.

16 Q. Mr. Calvagno, that's your Ring
17 camera, correct?

18 A. Yes.

19 Q. This is a video that you turned
20 over to your attorney to turn over to
21 Plaintiff's counsel as part of discovery,
22 correct?

23 A. I guess so.

24 MR. INDUSI: Let's watch the
25 video and then I will ask you the

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1 R. A. CALVAGNO II

2 question.

3 (Playing video.)

4 THE WITNESS: What am I

5 looking at?

6 MR. INDUSI: I will ask you

7 that question very shortly.

8 Q. Just a few questions. Your car
9 is not in the driveway; the Hellcat is not in
10 the driveway, correct?

11 A. Correct.

12 Q. I am going to assume that no one
13 else drives the Hellcat except you?

14 A. Back then, no. Now, yes.

15 Q. Who else --

16 A. Anthony drives it now. I have a
17 new one.

18 Q. So you still have the Hellcat and
19 now you have another Hellcat?

20 A. Yes.

21 Q. But back then, in 2021, if the
22 Hellcat wasn't in the driveway you were not
23 home?

24 A. Correct.

25 Q. The video shows I think

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1 R. A. CALVAGNO II

2 Mr. Desousa walking down his driveway and
3 walking down the street; is that correct?

4 A. Correct.

5 Q. What does this video show? I am
6 at a loss.

7 A. The fact that they claim in the
8 lawsuit that they can't leave their house and
9 ride bikes and take walks because it's unsafe
10 because of my car, and here they are taking a
11 walk and leaving their house. It is not
12 unsafe to leave their house like they claim.

13 Q. In the video it shows Mr. Desousa
14 walking south on Grand Central Avenue in
15 Amityville?

16 A. Walking north on Grand Central
17 Avenue next to a pickup truck it looked like.

18 Q. He's walking on his side of the
19 road not yours, correct?

20 A. He's walking --

21 Q. He's walking north from the
22 south, correct? He's south of his house
23 walking north?

24 A. Yes.

25 Q. And he is on his side of the

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1 R. A. CALVAGNO II

2 road, correct?

3 A. On the road. Nobody owns the
4 road. He's on the west side of the road.

5 MR. INDUSI: West side of the
6 road. That's the only question I
7 have. I have nothing more on this.

8 I don't know if the second one
9 shows anything more. Let's play the
10 second one.

11 The same caption, the same
12 date. Calvagno, August 2, 2021,
13 Plaintiff walking MP4.

14 (Playing video.)

15 Q. In this one it shows Mr. Desousa
16 walking south on Grand Central Avenue in
17 Amityville, correct?

18 A. Correct.

19 Q. And he's walking with a cane in
20 the video?

21 A. I did not see that.

22 Q. Were you aware that Mr. Desousa
23 recently had surgery on or about -- on or
24 before I will say August 2, 2021?

25 A. Yes.

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1 R. A. CALVAGNO II

2 Q. How did you come to learn that he
3 had surgery then?

4 A. Something with the court got
5 cancelled due to his surgery or postponed.

6 Q. He didn't come over and knock --

7 A. No.

8 Q. -- tell you?

9 A. No.

10 Q. Another subject matter at issue
11 in this case is garbage.

12 Do you know when garbage pick up
13 occurs on your block?

14 A. Yes.

15 Q. What days?

16 A. Monday is leaf and grass day.
17 Tuesday is garbage day. I believe Wednesday
18 or Thursday is recycle day and Friday is
19 regular garbage.

20 Q. So Tuesday and Friday are
21 garbage?

22 A. Regular garbage.

23 Q. And recycle you think is
24 Wednesday morning?

25 A. I think so.

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1 R. A. CALVAGNO II

2 Q. Do you put out recycles?

3 A. No.

4 MR. INDUSI: So there is I

5 believe a video, August 10th,

6 Calvagno, August 10, 2021, Plaintiff

7 removing garbage from the can and

8 leaving it in the street MP4.

9 (Playing video).

10 MR. INDUSI: Pause that, John.

11 Q. Who is that individual that just
12 came out of your house?

13 A. Anthony.

14 Q. Who is that person that came out
15 of your house?

16 A. My mother.

17 Q. But she doesn't live with you,
18 visiting? She's living with you at this time
19 or she's not?

20 A. They were staying there for a
21 while. I am not sure exactly when they left.
22 I believe at this time they were visiting.

23 Q. This is what time? This looks
24 like it's in the evening, about -- military
25 time about 8:00 p.m., correct?

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1 R. A. CALVAGNO II

2 A. Yes.

3 MR. INDUSI: Play the video.

4 (Playing video.)

5 Q. This is a video, fair to say it
6 looks like there are bags of rubbish up
7 against the curb in front of Mr. Desousa's
8 house; is that correct?

9 A. Yes.

10 MR. INDUSI: John, can you hit
11 play -- pause to show the timestamp.
12 I want to nail down this time.

13 This is a Ring video provided
14 by Defendant's counsel in discovery.
15 There is a timestamp on the bottom
16 that says 2021-10-8 19:53 EDT.

17 Q. Mr. Calvagno, this is a Ring
18 camera recording that you removed from your
19 Ring camera, correct?

20 A. Yes.

21 Q. And you did not do anything to
22 doctor this or change anything on this
23 timestamp video, correct?

24 A. No.

25 Q. To your knowledge, sitting here

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1 R. A. CALVAGNO II

2 today, that is the correct date and time that
3 this video was recorded, correct?

4 A. As far as I can tell by looking
5 at it.

6 Q. You've turned over a number of
7 videos in discovery here. Again, they are all
8 dated, all have timestamps? There is no trick
9 question here, I am just trying to confirm
10 that these are the dates and times that they
11 say they are, correct?

12 A. Yes.

13 Q. I read that date stamp based on
14 the title of the video and the numerical stamp
15 in the corner to mean August 8th. Meaning the
16 month of August, the date being 10 and the
17 year being 2021.

18 Do you agree with that?

19 A. It could be August 8th or October
20 8th. I don't know the date format that Ring
21 uses.

22 Q. Did you name the title of these
23 movies when you sent them to your attorney?

24 A. I think so.

25 Q. Sitting here today, do you recall

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1 R. A. CALVAGNO II

2 if this was October 8, 2021, or August 10,
3 2021?

4 A. I don't remember.

5 Q. Let me show you some pictures.

6 Why did this video get turned
7 over?

8 A. For the bags in the street with
9 no garbage can.

10 MR. INDUSI: I am going to
11 show you some pictures. We will mark
12 these -- I think we are up to 4.

13 (Plaintiff's Exhibit 4,
14 Photographs, were marked for
15 identification.)

16 MR. INDUSI: I am showing the
17 witness what has been marked as
18 Plaintiff's 4.

19 Q. Is this a picture that you also
20 turned over to your attorney to turn over to
21 Plaintiff's counsel as part of discovery?

22 A. Yes.

23 Q. Is this a picture of garbage bags
24 that was taken on the same day that the Ring
25 video that we just watched was recorded?

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1 R. A. CALVAGNO II

2 A. I don't know if it's from the
3 same day or not.

4 Q. Do you remember taking this
5 photo?

6 A. I remember taking the photo, yes.

7 Q. Do you remember the date you took
8 the photograph?

9 A. No.

10 Q. Looking at this photograph, is
11 the contents of the trash bags appear to you
12 to be garbage or recyclables?

13 A. I cannot see in the bags.

14 Q. Are you able to see that there is
15 a Poland Spring bottle in one of the bags here
16 in the front?

17 A. Yes.

18 Q. Other than showing that this is
19 potentially garbage sitting in the road
20 uncovered --

21 MR. INDUSI: Withdrawn.

22 Q. You turned these pictures over
23 and this Ring video footage over to establish
24 that Mr. Desousa has purportedly or allegedly
25 left garbage uncovered in the road?

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1 R. A. CALVAGNO II

2 A. Correct.

3 Q. We are going to talk about your
4 garbage.

5 Who puts your garbage out?

6 A. Me, Anthony. It depends.

7 Q. Do you cover your garbage when
8 you put your garbage out or does Anthony cover
9 the garbage that's put out in front of your
10 house for garbage collection?

11 A. It's in cans. There are no
12 covers on the cans.

13 Q. Did you ever put out garbage
14 that's not in cans in front of your house?

15 A. If it's too much for cans, yes.

16 MR. INDUSI: I am going to
17 have this marked as Plaintiff's
18 Exhibit 5.

19 (Plaintiff's Exhibit 5,
20 Photograph, was marked for
21 identification.)

22 MR. INDUSI: I will hand the
23 witness what has been marked as
24 Plaintiff's 5.

25 Plaintiff's 5 is a one, two,

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1 R. A. CALVAGNO II
2 three, four, five-page document with
3 various pictures of garbage that has
4 dates below the images.

5 MS. HAMID: I am going to
6 object to these photographs. The
7 dates, they are not on the
8 photographs. There is no indication
9 when these photos were taken.

10 MR. INDUSI: I am going to
11 move to strike your objection. We
12 are not at trial. We are at a
13 deposition.

14 I am going to ask the witness
15 some questions about the pictures.
16 If he knows the dates, he can answer
17 them. If he doesn't know the dates,
18 he doesn't have to answer them, but I
19 am going to ask him some general
20 questions about the photos.

21 Q. Did you have a chance to flip
22 through one through five of Plaintiff's 5?

23 A. Yes.

24 Q. Does that appear to be garbage
25 pails in front of your home located at 320

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1 R. A. CALVAGNO II

2 Grand Central Avenue in Amityville?

3 A. Yes.

4 Q. And that's presumably garbage
5 that has appeared in front of your house at
6 320 Grand Central Avenue on different dates,
7 correct?

8 A. Possibly.

9 Q. Let's look at the first
10 photograph. Is the first photo different from
11 the second photo?

12 A. Yeah.

13 Q. Is the second photo different
14 from the third photo?

15 A. Yeah.

16 Q. Is the third photo different from
17 the fourth photo?

18 A. Yeah.

19 Q. Is the fourth photo different
20 than the fifth photo?

21 A. Yes, different.

22 Q. Is it fair to say that there are
23 five different dates -- I am not asking about
24 the dates -- five different dates of five
25 photos showing garbage in front of your house

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1 R. A. CALVAGNO II

2 on five different dates?

3 A. Yeah.

4 MR. INDUSI: Let's take five
5 minutes.

6 (A recess was taken.)

7 MR. INDUSI: We will pull up
8 the videos. This looks like three
9 sets of -- four sets of videos that
10 were turned over by Mr. Calvagno.

11 One set is August 2, 2021,
12 open windows at 6:30 a.m.

13 Let's start with that one.

14 MR. CUOMO: This is Calvagno
15 August 2, 2021. Open windows at 6:30
16 MP4.

17 (Playing video.)

18 THE WITNESS: There is a glare
19 from the light --

20 MR. CUOMO: Is that better?

21 THE WITNESS: Yes. Thank you.

22 (Playing video.)

23 MR. INDUSI: Pause it right
24 here.

25 This is labeled -- the file

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1 R. A. CALVAGNO II
2 name is labeled August 2, 2021, open
3 windows 6:30 a.m. The timestamp
4 corner reads 202107-20 -- 28 06:32:26
5 EDT.

6 This we have a timestamp that
7 appears -- we know it cannot be -- 28
8 can't be the month, it has --

9 (Speaking simultaneously.)

10 Q. This looks like it is July 28,
11 2021, but the title is August 2, 2021, right?

12 Sitting here today, Mr. Calvagno,
13 was this video taken on July 28, 2021, or
14 August 2, 2021?

15 A. Appears to be July 28th.

16 Q. That's fine.

17 This shows -- this is a Ring
18 video of the front of your house and it shows
19 Mr. Desousa's home.

20 For what purpose was this video
21 turned over in discovery?

22 A. If you zoom in on the video and
23 look at the window on the right-hand side of
24 Desousa's house, he's standing there with a
25 videocamera waiting for me to start my car to

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RICHARD A. CALVAGNO II - May 11, 2023

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1 R. A. CALVAGNO II

2 go to work to videotape me.

3 Q. And this is the same video you
4 circled in the prior exhibit and labeled C,
5 correct?

6 A. The same window?

7 Q. The same window?

8 A. Yes.

9 Q. That's the window --

10 A. Yes.

11 Q. -- Mr. Desousa is videotaping you
12 and I would guess all of the videos that he
13 has turned over to you, correct?

14 A. Yes.

15 MR. INDUSI: Let's close this
16 video.

17 Now, I think there is a second
18 video that is dated -- that's the
19 only one that is dated August 2,
20 2021, but we've clarified it's just
21 mislabeled. The real date is July.

22 The next one is January 6,
23 2022. There are one, two, three,
24 four videos from that date.

25 Let's start with January 6,

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1 R. A. CALVAGNO II

2 2022, Defendant leaving at 7:04 a.m.

3 Let's watch that one.

4 (Playing video.)

5 Q. The time stamp looks like 010622

6 07:05:03 EST.

7 Sitting here today looking at
8 this video that is you walking out of your
9 house, correct?

10 A. Correct.

11 Q. You're wearing a sweatshirt,
12 correct?

13 A. Sweatshirt, jacket. I did not
14 pay attention.

15 Q. Is it fair to say based on the
16 timestamp of the Ring camera and based on the
17 physical appearance of the trees and the
18 attire that you were wearing that was
19 accurately dated January 6th, correct?

20 A. Yes.

21 MR. INDUSI: Let's play the
22 video.

23 (Playing video.)

24 Q. The video shows you sitting in
25 your car. The car was running when you exited

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 R. A. CALVAGNO II

2 the house, correct?

3 A. Correct.

4 Q. And you're sitting in the car; it
5 does not show anything other than that, right?

6 A. It shows the open window of me
7 being videotaped.

8 Q. It shows the open window from Mr.
9 Desousa's house, the same window that you
10 marked as C in the first exhibit that I had
11 showed you, and it shows that window being
12 open, correct?

13 A. Correct. With him with a
14 videocamera --

15 Q. With him with a videocamera
16 filming you. And that's the only window
17 that's open in front of the house, correct?

18 A. Correct.

19 MR. INDUSI: Off the record.

20 (A discussion was held off the
21 record.)

22 MR. INDUSI: The second one is
23 January 6, 2022, Plaintiff closing
24 the window at 7:06 a.m. MP4.

25 Let's play that play video.

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1 R. A. CALVAGNO II

2 (Playing video.)

3 MR. INDUSI: Let's just pause

4 it.

5 Q. The timestamp shows 7:05:56 and

6 Mr. Calvagno is turning out of his driveway;

7 is that correct?

8 A. Yes.

9 Q. And the window, in your opinion,
10 is open if I am reading that correctly at this
11 point?

12 A. Yes.

13 MR. INDUSI: Let's play the
14 video.

15 (Playing video.)

16 THE WITNESS: Now it's closed.

17 MR. INDUSI: Let's pause it
18 here.

19 Q. It looks like there is movement
20 there and it looks like there it's closed?

21 A. Right there it's closed.

22 Q. Mr. Calvagno, for the timestamp
23 on this video as of 7:06:38 a.m. the
24 northern-most window on the front of Mr.
25 Desousa's home closes after you've left your

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1 R. A. CALVAGNO II

2 home, correct?

3 A. Yes.

4 Q. And that's the only window that
5 was open, correct?

6 A. Yes.

7 Q. As of 7:06:38 it was closed,
8 correct?

9 A. Yes.

10 MR. INDUSI: Let's look at the
11 next January 6th video. This is
12 January 6, 2022. Plaintiff's lights
13 on in the front of the room -- in the
14 front room at 6:45 a.m. MP4.

15 (Playing video.)

16 THE WITNESS: Pause it for one
17 second. I know what this video is.
18 You need to zoom in on it and look at
19 the window to see why I sent it.

20 Q. I am going to ask you if you can
21 explain to me why you sent this video?

22 A. Because I am accused of waking
23 people up with my car, but they are already up
24 exercising on their exercise machine that you
25 can clearly see through the window.

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1 R. A. CALVAGNO II

2 Q. It's your testimony that on this
3 video at approximately 6:40 a.m. per the
4 timestamp in the bottom, right-hand corner of
5 the video that from your home you can see
6 someone exercising through the northern-most
7 window of Mr. Desousa's home?

8 A. I can see Mr. Desousa exercising.
9 If you zoom in about 20 times more you can see
10 clearly into the window.

11 Q. So your testimony is that this
12 video was turned over to show that Mr. Desousa
13 on January 6, 2022, was exercising in the
14 morning in his room?

15 A. He is already awake before my car
16 starts, that my car don't wake him up like he
17 claims.

18 MR. INDUSI: You want to play
19 the rest of the video to make sure
20 there is nothing else that we missed.

21 (Playing video.)

22 THE WITNESS: There is nothing
23 else on that. That's what the video
24 was for.

25 Q. Do you know that room in the

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1 R. A. CALVAGNO II
2 northern-most part of -- the front-facing
3 window in the northern-most part of Mr.
4 Desousa's home, do you know which room that is
5 in his home? Is it a bedroom, bathroom?

6 A. I've never been in the room, but
7 I've been in a house just like his, the same
8 floor plan. It's a bedroom in that house.

9 Q. Do you know if it's the master
10 bedroom, a secondary --

11 A. It should be a secondary bedroom,
12 but I don't know what the inside of his house
13 looks like.

14 MR. INDUSI: I think there is
15 nothing else in that video --

16 THE WITNESS: Correct.

17 MR. INDUSI: According to
18 Mr. Calvagno I think there is one
19 more January 6th video.

20 This is entitled January 6,
21 2022. Plaintiff's window open at
22 6:58 a.m. MP4.

23 THE WITNESS: That's the
24 beginning of the first video. They
25 are not in order right now.

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1 R. A. CALVAGNO II

2 MR. INDUSI: Let's just open
3 it up and confirm it.

4 (Playing video.)

5 Q. This video is about to end. I am
6 just going to ask you the question this way.

7 We just watched this last video
8 which we believe by looking at the videos is
9 really the second video of January 6th to show
10 the window opening; is that correct?

11 A. Yes.

12 Q. The first video of January 6th
13 being the earliest video which you testified
14 was Mr. Desousa working out. This being the
15 second video showing the window open. The
16 third video being you leaving and the fourth
17 video being the window closing at 7:06?

18 A. Yeah, I think so. It's a little
19 confusing, but yes.

20 MR. INDUSI: I believe there
21 is -- I have here in my notes August
22 2nd, which turned out was really
23 July 28, 2021 and now we have two
24 videos.

25 John, scroll down.

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1 R. A. CALVAGNO II

2 Plaintiff's window closes. This is
3 July 28th. This is window opening.
4 July 28, 2021, Plaintiff's window
5 opens at 630 a.m. MP4.

6 Let's play that video.

7 (Playing video.)

8 THE WITNESS: I think we saw
9 this already. The same white van
10 just passed.

11 MR. INDUSI: Just pause it.

12 Q. Mr. Calvagno, I think the video
13 that was mislabeled August 2, 2021, which we
14 noticed the timestamp was really July 28,
15 2021, was really this video which we already
16 saw?

17 A. I think so.

18 MR. INDUSI: Let's just watch
19 to the end. It's a few seconds more.
20 Then we will get to July 28th.

21 (Playing video.)

22 Q. Other than showing that the
23 northern-most window on Mr. Desousa's home, is
24 there any other reason that this video was
25 turned over?

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1 R. A. CALVAGNO II

2 A. No, just showing the window open
3 and he is there with a camera.

4 MR. INDUSI: The next one
5 shows July 28th. There are two more
6 July 28th videos. There is Defendant
7 driving away at 7:00 a.m.

8 Let's go to that one.

9 (Playing video.)

10 Q. This video, the title already on
11 the record, depicts, again, the northern-most
12 window being the only window open on Mr.
13 Desousa's home and Mr. Calvagno entering his
14 Hellcat and driving northbound on Grand
15 Central Avenue, correct?

16 A. Yes.

17 MR. INDUSI: There is another
18 July 28th video.

19 Off the record.

20 (A discussion was held off the
21 record.)

22 MR. INDUSI: Calvagno-July 28,
23 2021. Plaintiff's window closes at
24 7:04 a.m. MP4.

25 THE WITNESS: We saw that

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1 R. A. CALVAGNO II

2 already.

3 MR. INDUSI: Not on July 28th
4 I don't think. We never saw this guy
5 running.

6 (Playing video.)

7 MR. INDUSI: I don't see the
8 window close. Maybe it did.

9 Q. Other than the window closing, is
10 there any other reason this video was turned
11 over?

12 A. No.

13 MR. INDUSI: Now, I think we
14 are onto July 29th. There are three
15 videos here. The first one we will
16 do, Plaintiff's window -- July --
17 Calvagno-July 29, 2021. Plaintiff's
18 window closed at 6:32 a.m.

19 That looks like the most
20 recent -- the earliest video of the
21 three.

22 (Playing video.)

23 Q. Did this video show the window
24 closing?

25 A. I don't know if it shows the

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1 R. A. CALVAGNO II
2 window opening or closing. I think it's when
3 it's open because my car is still there. I
4 think it is labeled wrong on your end.

5 Q. On that day the window appeared
6 to be open in that video, correct?

7 A. I think so.

8 Q. And your car is still in the
9 driveway, correct?

10 A. Yes.

11 MR. INDUSI: Let's look at the
12 next one which should be labeled
13 July 29, 2021, Plaintiff's window
14 open at 6:52 a.m. MP4.

15 (Playing video.)

16 Q. This shows your vehicle, you
17 getting into your vehicle, correct?

18 A. No. I did not get in. I put
19 something in it.

20 Q. And you're still home?

21 A. Yes.

22 MR. INDUSI: Let's go to the
23 next one. July 29, 2021.
24 Plaintiff's window is open on 6:58 as
25 Defendant is leaving MP4.

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1 R. A. CALVAGNO II

2 (Playing video.)

3 MR. INDUSI: Pause it here.

4 Q. Now, when you walked out you said
5 something, I am anticipating it --

6 A. I don't even know what I said. I
7 couldn't understand.

8 Q. When you walked out on this --

9 A. I said something.

10 Q. -- if you remember, do you
11 remember noticing when you left your house
12 that the window in Mr. Desousa's house was
13 open on this day?

14 A. I always look.

15 Q. Mr. Calvagno, this video shows
16 you exiting your home, getting into your Dodge
17 Hellcat and heading northbound on Grand Cental
18 Avenue in Amityville and Mr. Desousa's
19 northern-most window on his home is open,
20 correct?

21 A. Correct.

22 Q. The only window on his home that
23 is open?

24 A. Yes.

25 MR. INDUSI: I think now I

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1 R. A. CALVAGNO II
2 want to ask you a question about a
3 video that you turned over that's
4 entitled January 6, 2022. Plaintiff
5 speeding MP4.

6 (Playing video.)

7 THE WITNESS: That's all
8 that's on the video. Ring just goes
9 30 seconds.

10 MR. INDUSI: Let's pause the
11 video.

12 Q. Mr. Calvagno, this video is dated
13 January 26, 2022, per the timestamp in the
14 corner 16:22:05 EST. Military time you're
15 looking at 4:22 p.m.?

16 A. Yes.

17 Q. This is in the afternoon,
18 correct?

19 A. Yes.

20 Q. And you're not home, correct?

21 A. I don't believe so. My car is
22 not there.

23 Q. Why was this video turned over?

24 A. To show Mr. Desousa backing out
25 of the his driveway and taking off down the

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1 R. A. CALVAGNO II

2 block.

3 Q. Sitting here today, watching this
4 video, are you able to determine how fast Mr.
5 Desousa was driving his vehicle?

6 A. No.

7 Q. Based on your answer before,
8 you're not I think all that good at knowing
9 how fast you were driving your car. Are you
10 able, sitting here today watching that video,
11 to determine how fast Mr. Desousa was driving
12 his car?

13 A. I already answered that and said
14 no.

15 MR. INDUSI: Let's look at the
16 video May 20, 2021. It's called
17 Calvagno-May 20,2021. Plaintiff
18 screaming MP4.

19 (Playing video.)

20 Q. Mr. Calvagno, is that you in the
21 right corner of the screen?

22 A. Yes.

23 Q. That's your vehicle?

24 A. Yes.

25 Q. And it's running?

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1 R. A. CALVAGNO II

2 A. Yes.

3 Q. From what I can see, no one is
4 outside the front of Mr. Desousa's house; is
5 that correct?

6 A. That's incorrect I think. That's
7 incorrect. Yes.

8 Q. Do you see somebody outside?

9 A. Yes. If you look right there,
10 Mr. Desousa with a videocamera filming me.
11 Black tank top and black pants with his phone
12 in his hand.

13 Q. Just to make sure I'm seeing the
14 same thing you're seeing, that's him standing
15 to the right, looking at this video, to the
16 right of the front door?

17 A. Yes.

18 MR. INDUSI: Let' hit play.

19 (Playing video.)

20 THE WITNESS: Do you see him
21 moving now?

22 MR. INDUSI: Okay. Let's
23 pause here.

24 Q. Just for the record, Mr.
25 Calvagno, there is now what appears a

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1 R. A. CALVAGNO II

2 silhouette that appears to be black in color
3 in between the front door and front window of
4 Mr. Desousa's house who you are identifying as
5 Mr. Desousa who is videotaping you; is that
6 correct?

7 A. Yes.

8 Q. At this point, you've gone --
9 prior to the last time we've paused this
10 video, you've gone in your house, come back
11 outside of your house and you are now standing
12 next to your vehicle in your driveway; is that
13 correct?

14 A. Yes.

15 Q. At this point there has been no
16 verbal exchange between Mr. Desousa and you or
17 you and Mr. Desousa; is that correct?

18 A. No, that is not.

19 Q. I believe that is you saying keep
20 taking pictures asshole to Mr. Desousa; is
21 that correct?

22 A. A hundred percent.

23 Q. And you've opened your trunk
24 either simultaneously or shortly thereafter
25 making that comment; is that correct?

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1 R. A. CALVAGNO II

2 A. Correct.

3 Q. Now, Mr. Desousa, from the image
4 has moved to the left of the tree in front of
5 his house; is that correct?

6 A. Yes.

7 MR. INDUSI: Play the video.

8 (Playing video.)

9 Q. Now, it sounds as if Mr. Desousa
10 has now responded to you and said what did you
11 say, punk; is that correct?

12 A. Yes.

13 MR. INDUSI: Let's just see
14 what you said in response.

15 (Playing video.)

16 Q. You respond to him and say keep
17 taking pictures you fucking asshole; is that
18 correct?

19 A. Yes.

20 Q. There's back and forth; Mr.
21 Desousa saying go fuck yourself, fuck you, I
22 think in sum and substance. You're saying
23 fuck you and now you're saying come over here
24 and say it, correct?

25 A. Yes.

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1 R. A. CALVAGNO II

2 Q. And the video ends with Mr.

3 Desousa saying fuck you; is that correct?

4 A. There should be a second part to
5 that video.

6 Q. This video ends with that?

7 A. Yes.

8 MR. INDUSI: Let's run number
9 two. Calvagno-May 20, 2021.
10 Plaintiff screaming MP4.

11 (Playing video.)

12 MR. INDUSI: Let's pause it.

13 Q. So Mr. Desousa called you a dirt
14 bag a few times and you called him a scumbag,
15 correct?

16 A. Yes.

17 MR. INDUSI: Hit play.

18 (Playing video.)

19 Q. The video ends. You are sitting
20 in your vehicle, the engine is running,
21 correct?

22 A. Yes.

23 Q. Mr. Desousa never comes over to
24 your property, correct?

25 A. Correct.

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1 R. A. CALVAGNO II

2 Q. And you don't go over to his
3 property, correct?

4 A. Nope.

5 Q. In the first video you were the
6 first one to begin the verbal interaction with
7 Mr. Desousa, correct?

8 A. Yes.

9 Q. Some point after this you had
10 requested your lawyer to write a cease and
11 desist letter to Mr. Desousa's attorney,
12 correct?

13 A. I don't know if it was before
14 that or after that, but I did request one.

15 Q. Why did you request a cease and
16 desist letter?

17 A. It's very unsettling to have
18 somebody who is mentally unstable videotape me
19 everyday leaving my house not knowing what he
20 is going to do to me when he has threatened me
21 before.

22 Q. Watching this exchange here on
23 May 20, 2021, as you mentioned you were the
24 first one to initiate a verbal interaction
25 with Mr. Desousa and it seemed that

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1 R. A. CALVAGNO II

2 Mr. Desousa responded and you responded back
3 to him and you invited him to come over to
4 your house to --

5 A. It was not an invitation.

6 Q. You did tell him to come over to
7 you, correct?

8 A. I told him to come say it to my
9 face.

10 Q. He didn't ultimately, correct?

11 A. No.

12 Q. He never told you to come over to
13 say anything to his face, correct?

14 A. Not that I recall in that video,
15 no. It didn't sound like it.

16 Q. When you told him to come over
17 and say it to your face, you're saying it
18 wasn't really an invitation for him to come
19 over to you and say it to your face?

20 A. It wasn't an invitation to my
21 house. It was come say it to my face.

22 Q. What did you mean when you told
23 him to come say it to your face?

24 In your mind, when you said those
25 words was that an invitation that if he came

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1 R. A. CALVAGNO II

2 over you would have gotten physical with him?

3 A. No.

4 Q. What did it matter if he was

5 saying the words he was saying from his

6 property across the street or up close and

7 personal in your face?

8 A. What's the point of yelling and

9 waking the entire neighborhood up for no

10 reason.

11 Q. So you wanted him to come over to

12 keep the volume of your word yelling to a

13 minimum for the neighborhood's sake?

14 A. Yes.

15 Q. Did you see the cease and desist

16 letter that your lawyers prepared before it

17 was sent to Mr. Desousa?

18 A. Yeah.

19 MR. INDUSI: I am going to

20 mark Plaintiff's 6.

21 (Plaintiff's Exhibit 6,

22 Letter, was marked for

23 identification.)

24 MR. INDUSI: Take a look at it

25 and then I will ask you some

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1 R. A. CALVAGNO II

2 questions about it.

3 THE WITNESS: Okay.

4 Q. I am going to ask you some
5 questions first; the first, second, third
6 paragraph on the first page.

7 The first sentence, specifically,
8 "on May 21, 2021, at 6:42 a.m. as Mr. Calvagno
9 started his car, Mr. Desousa started screaming
10 motherfucker to Mr. Calvagno."

11 In fact, it was you who started
12 the verbal interaction with Mr. Desousa on May
13 21, 2021, correct?

14 A. Yeah.

15 Q. Did you tell your attorney before
16 they sent this letter that it was you who
17 started the verbal altercation with Mr.
18 Desousa?

19 A. I don't know what I told them.
20 This letter -- this sentence doesn't say I
21 started an argument. It says he was
22 screaming. It doesn't say he started an
23 argument with me.

24 Q. Well, it says "Mr. Desousa
25 started screaming motherfucker to Mr.

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1 R. A. CALVAGNO II

2 Calvagno."

3 A. Right. He started screaming
4 motherfucker. It doesn't say he started an
5 argument. Nothing says that he started an
6 argument. It says he started screaming
7 motherfucker.

8 Q. And you screamed other words at
9 him, correct?

10 A. I did.

11 Q. And you cursed at him, correct?

12 A. Yes.

13 Q. And you, in fact, told him to
14 come over here and say what he was saying to
15 your face, correct?

16 A. Yes.

17 MR. INDUSI: Let's look at the
18 May 22nd video. I don't know which
19 one is first, the argument with the
20 parents or the blocked vehicle.

21 Let's do May 22nd. Argument
22 with Defendant's parents MP4.

23 (Playing video.)

24 MR. INDUSI: Pause it.

25 Q. Mr. Calvagno, who is the person

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1 R. A. CALVAGNO II

2 to the leftmost on the video?

3 A. In the black?

4 Q. Yes.

5 A. My mother.

6 Q. And who is the person the
7 rightmost in the video?

8 A. My father.

9 Q. At this point it looks like your
10 father and Mr. Desousa are having a
11 discussion. Mr. Desousa has not cursed as of
12 yet at this point on the video; is that
13 correct?

14 A. I don't think so.

15 MR. INDUSI: Let's play the
16 video.

17 (Playing video.)

18 Q. It seems like there is a
19 discussion. It doesn't seem like there are
20 any threats, name calling between Mr. Desousa
21 and your mom or your dad; is that a fair
22 statement?

23 A. Argumentative. That's all.

24 Q. You would characterize that as an
25 argument?

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1 R. A. CALVAGNO II

2 A. Yeah.

3 MR. INDUSI: Let's watch
4 number two. This is Calvagno May 22,
5 2021, with Defendant's Parents 2 MP4.

6 (Playing video.)

7 (Speaking simultaneously.)

8 MR. INDUSI: It looks like
9 Mr. Desousa is going inside his
10 house.

11 Let's pause it.

12 Q. This shows -- the timestamp shows
13 approximately 3:44 -- it shows 15:44:43, 3:44
14 p.m. on May 22, 2021, correct?

15 A. Yes.

16 Q. Mr. Calvagno, can you show me
17 where in this video Mr. Desousa is yelling and
18 screaming at your parents?

19 A. Go back to the beginning.

20 MR. CUOMO: Want me to go
21 back?

22 MR. INDUSI: Sure. I just
23 want to identify it.

24 (Playing video.)

25 (Speaking simultaneously.)

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1 R. A. CALVAGNO II

2 MR. INDUSI: In this number
3 two, this is argument with
4 Defendant's parents there is no
5 yelling and screaming.

6 Let's play back argument with
7 Defendant's parents number one MP4.

8 (Playing video.)

9 THE WITNESS: There is yelling
10 right there.

11 Q. Is your dad yelling back?

12 A. They are both yelling. My father
13 can't defend himself, are you kidding me?

14 Q. It just seemed to --

15 A. He's my father --

16 Q. Mr. Desousa is not cursing or
17 calling him names though, correct?

18 A. I don't know.

19 MR. INDUSI: Let's watch it.

20 (Playing video.)

21 THE WITNESS: He's cursing.

22 Q. You're dad cursed two times more,
23 correct?

24 A. They both cursed --

25 (Speaking simultaneously.)

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1 R. A. CALVAGNO II

2 Q. In your letter here --

3 A. You're very --

4 Q. In your letter it says here

5 "Mr. Desousa started yelling and screaming at
6 his parents about the alleged --

7 A. Yelling and screaming is going
8 on. So read the print before you question me
9 on something stupid.

10 Q. The yelling and screaming that
11 you're referring to here is --

12 A. Yelling and screaming, not
13 cursing. Yelling and screaming. It's very
14 plain and simple. Let's go -- without going
15 through the same fucking question.

16 Q. I just want to clarify, your dad
17 was also yelling and screaming?

18 A. They were both yelling and
19 screaming, yes, for the 15th time. If you're
20 that fucking --

21 (Speaking simultaneously.)

22 MR. CUOMO: Act like a civil
23 person.

24 THE WITNESS: I am very civil.

25 MR. CUOMO: No, you're not.

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1 R. A. CALVAGNO II

2 You are being deposed here.

3 Answer --

4 (Speaking simultaneously.)

5 MR. CUOMO: I don't care. I
6 am the attorney in this case and I am
7 going to say something.

8 I am not going to sit here and
9 allow --

10 THE WITNESS: Don't fucking
11 yell at me.

12 MR. CUOMO: Don't you dare
13 curse in this room.

14 (Speaking simultaneously.)

15 MR. CUOMO: We are not going
16 to take that in here, am I clear? Am
17 I being clear, Mr. Calvagno?

18 THE WITNESS: Sure, Mr. Cuomo.

19 MR. CUOMO: You're a real --

20 THE WITNESS: A real what?

21 Say it.

22 MR. CUOMO: You're a real
23 wonderful human being.

24 MS. HAMID: Let's take five
25 minutes.

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1 R. A. CALVAGNO II

2 (A recess was taken.)

3 MR. INDUSI: The next video is

4 May 22nd. There are four videos.

5 Blocked vehicle 1 MP4.

6 (Playing video.)

7 THE WITNESS: If you'd like me

8 to explain --

9 MR. INDUSI: Let's pause it

10 here.

11 Q. Mr. Calvagno, this appears to be

12 a video dated May 22, 2021, at 9:05 a.m.,

13 correct?

14 A. Yes.

15 Q. It looks like your pickup is in

16 the street, another black sedan in front of

17 your house is in the street and the flatbed is

18 in your driveway, correct?

19 A. Yes.

20 Q. What is the -- what is this video

21 showing us?

22 A. Flatbed parked across the street

23 in front of Mr. Desousa's house. It's mine.

24 It shows him pulling his car out of his

25 driveway to block that flatbed in so I can't

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1 R. A. CALVAGNO II

2 move it.

3 Right now there is nothing around
4 the flatbed, the front or the back of it. The
5 flatbed is free and clear if I have to go out
6 and go to a call for work.

7 Q. Let me stop you right there.

8 You said the flatbed is yours; do
9 you personally own the flatbed?

10 A. The flatbed is C & R's.

11 MR. CUOMO: Let's take a few
12 minutes.

13 (A recess was taken.)

14 Q. I am assuming that -- before we
15 took a break, it's not your personal tow
16 truck, it's C & R's tow truck?

17 A. Yes.

18 Q. You have it there in case you
19 need to go on a call; is that correct?

20 A. Correct.

21 Q. I think earlier I asked you some
22 questions about your job duties. You said you
23 were an office manager.

24 Do you also do tows yourself?

25 A. If I have to.

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1 R. A. CALVAGNO II

2 Q. Do you have a CDL license to --

3 A. You don't need a CDL for that.

4 Q. What type of tows would you go
5 out and do if required?

6 A. If someone broke down.

7 Q. These are for --

8 A. We work with the police
9 department.

10 Q. Is that specified to a specific
11 road that an accident occurs on; is that how
12 that towing contract works?

13 A. It's Nassau County Police.

14 Q. Any and --

15 A. We work for all of Nassau County.

16 Q. Doesn't matter what road it broke
17 down on, Southern State Parkway, Northern
18 State Parkway, you're going?

19 A. Parkways are not Nassau County
20 Police. They are New York State Troopers.

21 Q. So if it's Nassau County Police,
22 not on a trooper-designated road, you have the
23 contract to go and pick up the vehicle?

24 A. Yes. I personally do not. The
25 company does.

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1 R. A. CALVAGNO II

2 Q. That's 24/7?

3 A. Yes.

4 Q. All tows for NCPD countywide?

5 A. Yes.

6 Q. So the car is parked there.

7 You're Hellcat is likely at the shop and you
8 have the tow truck?

9 A. Correct.

10 Q. Right now in the video, we are
11 looking at video designated blocked vehicle 1
12 MP4.

13 Your truck is parked on the
14 street in front of Mr. Desousa's house facing
15 south?

16 A. Yes.

17 MR. INDUSI: Let's continue
18 the video.

19 (Playing video.)

20 THE WITNESS: Mr. Desousa
21 started his car. That's the noise
22 you hear.

23 He turns around and parks it
24 right behind the flatbed about two
25 inches from the flatbed.

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1 R. A. CALVAGNO II

2 Q. This video ends, Mr. Calvagno,
3 with the vehicle pulling out of Mr. Desousa's
4 driveway, a black -- it looks like -- SUV,
5 making a U-turn and pulling up behind your tow
6 truck; is that correct?

7 A. Yes.

8 MR. INDUSI: Let's watch
9 number two.

10 (Playing video.)

11 THE WITNESS: As you can see,
12 it's right on the ass of the flatbed.
13 You can't even walk.

14 MR. INDUSI: Let's pause it
15 and I will ask a question.

16 Q. You have -- now this video number
17 two starts with a black SUV, which appears to
18 be the same black SUV that pulled out of Mr.
19 Desousa's driveway parked behind the tow
20 truck; is that correct?

21 A. Yes.

22 MR. INDUSI: Let's play the
23 video.

24 (Playing video.)

25 Q. This video ends -- I am going to

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1 R. A. CALVAGNO II
2 ask you the question. It looks like your mom
3 enters the home in this video at the end of
4 the video and indicates that somebody is
5 taking pictures, presumably Mr. Desousa; is
6 that correct?

7 A. Yes.

8 MR. INDUSI: Let's watch
9 Calvagno May 22, 2021, blocked
10 vehicle number three MP4.

11 (Playing video.)

12 MR. INDUSI: Let's pause it
13 for one second.

14 Q. It looks like there is
15 construction going on in your property.

16 This is the new driveway,
17 correct?

18 A. No, they are putting a new
19 bulkhead at my house at that point in time.
20 You can see Mr. Desousa pulled his wife's car
21 out of the driveway.

22 Q. And he's heading southbound --

23 A. He didn't leave it behind my
24 truck right now.

25 MR. INDUSI: Let's continue to

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1 R. A. CALVAGNO II

2 watch.

3 (Playing video.)

4 THE WITNESS: Now he parks his
5 wife's car in front of the truck so I
6 can't get out.

7 MR. INDUSI: I am going to ask
8 you some questions now.

9 Q. It looks like to me there's at
10 least 10 feet between the front of that truck
11 and the back of Mr. Desousa's wife's vehicle;
12 is that correct?

13 A. No, like three feet.

14 Q. And you can tell that from this
15 picture?

16 A. I was there in person.

17 Q. You were home at this time?

18 A. Yes.

19 Q. Did you ever go out and walk over
20 there and look closely to see what the
21 distance was?

22 A. No.

23 Q. What was the vantage point to
24 which you saw the distance between that back
25 of Mrs. Desousa's vehicle and the front of

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1 R. A. CALVAGNO II

2 your tow truck?

3 A. From my driveway.

4 Q. Did you turn over the Ring video
5 showing you standing in your driveway and
6 observing that distance?

7 A. It might be on one of these. No,
8 because I was walking back and forth. I
9 turned the video over of cars being parked
10 there.

11 MR. INDUSI: Let's watch the
12 video.

13 (Playing video.)

14 MR. INDUSI: What appears you
15 to be coming out of the house at the
16 tail end of this video.

17 Let's watch the fourth video.
18 Calvagno May 22, 2021 blocked vehicle
19 4.MP4.

20 (Playing video.)

21 MR. INDUSI: Let's pause it
22 here.

23 Q. Looking at the distance between
24 the rear of Mrs. Desousa's vehicle and the
25 front of your tow truck, again, looking at

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1 R. A. CALVAGNO II

2 this video, do you still believe it to be a
3 three-foot difference between the --

4 A. Two and five feet. What you
5 can't see is on the back of this tow truck it
6 sticks out about two and a half feet out is a
7 tow bar that is the size of the tow truck. It
8 sticks out.

9 You can't -- if I cut the wheel
10 to the left right there to pull out, I am
11 going to rip the whole front of his car off
12 with that tow bar. You can't see it with this
13 picture, but if you know a flatbed you know
14 how they're made.

15 I have to pull up a good two and
16 a half, three feet before I can cut the wheel
17 or the tail bar will take the front of his car
18 off.

19 Q. Were you able to get your tow
20 truck out of this spot without damaging
21 Mr. Desousa's vehicle or Mrs. Desousa's
22 vehicle?

23 A. If I had to?

24 Q. Yes.

25 A. No.

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1 R. A. CALVAGNO II

2 Q. Did you have to?

3 A. No. If you watch the red car
4 will move and I pull the tow truck up at the
5 end of the driveway.

6 MR. INDUSI: Let's play the
7 video.

8 (Playing video.)

9 Q. Do you have in your possession
10 the video showing Mr. Desousa moving his
11 vehicles?

12 A. It just showed you moving them
13 out.

14 Q. Moving them --

15 A. If you go back to the video with
16 the arguing with my dad you will see the tow
17 truck was pulled forward and was moved.

18 Q. Do you have any other Ring videos
19 from May 22, 2021, in your possession?

20 A. No, I don't think so.

21 MR. CUOMO: There is a fifth
22 one.

23 THE WITNESS: Maybe that's it
24 then.

25 MR. INDUSI: We will have to

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1 R. A. CALVAGNO II

2 pick a date to finish.

3 THE WITNESS: Yeah, if you
4 look here all the cars -- if I move
5 the tow truck forward, he moves the
6 black car forward and now the wife's
7 car is blocking the driveway.

8 Do you see how they are all
9 moved?

10 MR. INDUSI: Yes, I am going
11 to ask you some questions. Let's
12 watch the rest of the video.

13 (Playing video.)

14 THE WITNESS: You see how they
15 are all moved.

16 MR. INDUSI: Yes. I just want
17 to see what the rest of this video
18 shows and then I will ask you some
19 questions and then we will call it
20 for today.

21 (Playing video.)

22 THE WITNESS: There you go.
23 She pulled away again. He's putting
24 it back in the driveway now.

25 He's moving it closer to the

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1 R. A. CALVAGNO II

2 truck. It looks like about two feet
3 there now.

4 Q. So this video ends. It shows
5 somebody is in the vehicle, which you
6 identified as Mrs. Desousa's vehicle. It
7 looks like the vehicle was reversed closer to
8 the tow truck and right before the video ends
9 it pulls slightly forward --

10 A. Very slightly.

11 Q. After this video ends, is there
12 no further Ring videos that capture
13 Mr. Desousa's -- Mrs. Desousa's vehicle and
14 your tow truck?

15 A. I don't know. If they weren't
16 submitted there are no other videos.

17 Q. Is there a reason subsequent
18 videos to this video were not provided to your
19 attorney in connection with this alleged
20 incident?

21 A. They would have been repetitive
22 to show the same thing of the truck being
23 blocked in.

24 Q. At any point on May 22, 2021,
25 does Mr. Desousa move his vehicles back into

DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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1 R. A. CALVAGNO II

2 his driveway?

3 A. Yes.

4 Q. What time does that happen?

5 A. I don't remember.

6 Q. Were you prevented from going on
7 any tow calls on May 22, 2021, as a result of
8 Mr. Desousa having his cars parked in front of
9 his house?

10 A. I didn't get no calls thankfully.

11 Q. Was there any argument between
12 you and Mr. Desousa about moving his cars back
13 into his driveway or did he do so on his own?

14 A. At the end of the day he did so
15 on his own.

16 MR. INDUSI: It's after 4:00.

17 I have to be somewhere at 5:00. Just
18 the normal stips. Keep this open.

19 I just ask that you not speak
20 about your testimony that you gave
21 here today until we finish your
22 deposition.

23 (Time noted: 4:02 p.m.)

24

25

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A C K N O W L E D G M E N T

STATE OF NEW YORK)
 : ss
COUNTY OF)

I, RICHARD A. CALVAGNO II, hereby
certify that I have read the transcript of my
testimony taken under oath in my deposition of
May 11, 2023; that the transcript is a true,
complete and correct record of my testimony,
and that the answers on the record as given by
me are true and correct.

RICHARD A. CALVAGNO II

Signed and subscribed to before
me, this day
of , 2023.

Notary Public, State of New York

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-----I N D E X-----

WITNESS EXAMINATION BY PAGE

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-----INFORMATION TO BE FURNISHED-----

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-----EXHIBITS-----

PLAINTIFF'S FOR I.D.

1 Photograph 27

2 Letter 34

3 Photograph 35

4 Photograph 51

5 Photograph 53

6 Letter 79

(Counsel retained exhibits.)

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C E R T I F I C A T E

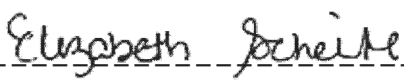
STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

I, ELIZABETH SCHEIBE, a Notary
Public within and for the State of
New York, do hereby certify:

That RICHARD A. CALVAGNO II,
the witness whose deposition is
hereinbefore set forth, was duly
sworn by me and that such deposition
is a true record of the testimony
given by such witness.

I further certify that I am not
related to any of the parties to this
action by blood or marriage; and that I am
in no way interested in the outcome of
this matter.

IN WITNESS WHEREOF, I have
hereunto set my hand this 11th day of
May, 2023.



ELIZABETH SCHEIBE



DIANE C. and THOMAS E. DESOUSA v. RICHARD A. CALVAGNO II, et al.
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*** ERRATA SHEET ***

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NAME OF CASE: DIANE C. DESOUSA and THOMAS E.

DESOUSA v. RICHARD A. CALVAGNO

II and PATRICK J. KARCHER

DATE OF DEPOSITION: 5/11/2023

NAME OF WITNESS: RICHARD A. CALVAGNO II

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RICHARD A. CALVAGNO II

SUBSCRIBED AND SWORN BEFORE ME THIS ____ DAY OF
_____, 2023.

(NOTARY PUBLIC) MY COMMISSION EXPIRES:

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SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF SUFFOLK

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DIANE C. DESOUSA AND THOMAS E.

DESOUSA,

Plaintiff,

- against -

RICHARD A. CALVAGNO II AND PATRICK

J. KARCHER,

Defendant.

Index No.: 600371/2021

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1225 Franklin Avenue
Garden City, New York

August 1, 2023
11:20 a.m.

Continued Examination Before Trial
of the Defendant RICHARD A. CALVAGNO II,
pursuant to Notice, before Elizabeth Scheibe,
a Notary Public of the State of New York.

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A P P E A R A N C E S: (Continued)

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.1 Objections at Depositions

(a) Objections in general. No objections shall be made at a deposition except those, pursuant to subdivision (b), (c) or (d) of Rule 3115 of the Civil Practice Law and Rules, would be waived if not interposed, and except in compliance with subdivision (e) of such rule. All objections made at a deposition shall be noted by the officer before whom the deposition is taken, and the answer shall be given and the deposition shall proceed subject to the objections and to the right of a person to apply for appropriate relief pursuant to Article 31 of the C.P.L.R.

(b) Speaking objections restricted. Every objection raised during a deposition shall be stated succinctly and framed so as not to suggest an answer to the deponent and, at the request of the questioning attorney, shall include a clear statement as to any defect in form or other basis of error or irregularity. Except to the extent permitted by C.P.L.R. Rule 3115 or by this rule, during the course of the examination persons in attendance shall not make statements or comments that interfere with the questioning.

221.2 Refusal to answer when objection is made

A deponent shall answer all questions at a deposition, except (i) to preserve a privilege or right of confidentiality, (ii) to enforce a limitation set forth in an order of the court, or (iii) when the question is plainly improper and would, if answered, cause significant prejudice to any person. An attorney shall not direct a deponent not to answer except as provided in C.P.L.R. Rule 3115 or this subdivision. Any refusal to answer or direction not to answer shall be accompanied by a succinct and clear statement of the basis therefor. If the deponent does not answer a question, the examining party shall have the right to complete the remainder of the deposition.

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221. UNIFORM RULES FOR THE
CONDUCT OF DEPOSITIONS

221.3 Communication with the deponent

An attorney shall not interrupt the deposition for the purpose of communicating with the deponent unless all parties consent or the communication is made for the purpose of determining whether the question should not be answered on the grounds set forth in section 221.2 of these rules and, in such event, the reason for the communication shall be stated for the record succinctly and clearly.

IT IS FURTHER STIPULATED AND AGREED that the transcript may be signed before any Notary Public with the same force and effect as if signed before a clerk or a Judge of the court.

IT IS FURTHER STIPULATED AND AGREED that the examination before trial may be utilized for all purposes as provided by the C.P.L.R.

IT IS FURTHER STIPULATED AND AGREED that all rights provided to all parties by the C.P.L.R. cannot be deemed waived and the appropriate sections of the C.P.L.R. shall be controlling with respect hereto.

IT IS FURTHER STIPULATED AND AGREED by and between the attorneys for the respective parties hereto that a copy of this examination shall be furnished, without charge, to the attorneys representing the witness testifying herein.

- oOo -

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1

2 R I C H A R D A. C A L V A G N O I I,

3 called as a witness, having been

4 duly sworn by a Notary Public, was

5 examined and testified as follows:

6 EXAMINATION BY

7 MR. INDUSI:

8 Q. Good morning, Mr. Calvagno.

9 A. Good morning.

10 Q. The same ground rules apply as I
11 went over them last time. You understand that
12 you are still under oath?

13 A. Yes.

14 Q. You understand that I am going to
15 ask you questions; if you could give verbal
16 responses, yes or no, or explain if it's that
17 type of question.

18 She can't take down a head nod,
19 even though I may understand that you are
20 nodding and know the answer. She needs to be
21 able to take it down.

22 Do you understand?

23 A. Yes.

24 Q. Are you under the influence of
25 any drugs or medication that would affect your

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1 R. CALVAGNO II

2 ability to testify truthfully today?

3 A. No.

4 Q. I think we left off I think

5 looking at a video involving a truck, a tow

6 truck, that you had parked in front of Mr.

7 DeSousa's house on May 22, 2021. I just want

8 to ask you a question.

9 Why did you park that truck in
10 front of his house on that day?

11 A. I parked on the street. That's
12 all.

13 Q. When you parked the car, when you
14 parked that truck, it was without consequences
15 to whose house it was in front of; is that
16 what you're saying?

17 A. No.

18 Q. Is there any reason you did not
19 park it in front of your house on that day?

20 A. I was maybe getting a delivery.
21 I am not sure. I just parked it in the
22 street. The street is public property.

23 Q. Now, you live on the water at
24 your address in Amityville, correct?

25 A. Yes.

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1 R. CALVAGNO II

2 Q. In 2021, did you ever rent out
3 dock space in your backyard?

4 A. No.

5 Q. In 2022, did you ever rent out
6 dock space in your backyard?

7 A. No.

8 Q. In 2023, this year, did you ever
9 rent out dock space in your backyard?

10 A. No.

11 Q. Going back to 2021, how many
12 boats did your own in 2021?

13 A. I am not sure if I had my boat
14 that year or not.

15 Q. Did you have or allow anyone to
16 keep a boat in your backyard in 2021?

17 A. Yes.

18 Q. Who is that?

19 A. Friends and family.

20 Q. Do you recall specifically which
21 boats and how many?

22 A. There may have been two or three
23 there.

24 Q. Do you recall whose boats they
25 were?

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1 R. CALVAGNO II

2 A. Friends and family.

3 Q. Who are the friends and family?

4 A. I am not giving their names out.

5 They are friends and family, and that's all
6 you need to know.

7 Q. Again, we are at a deposition.
8 You may not want to answer the question but --

9 A. That's my answer.

10 MS. HAMID: You have to give
11 out the names of the friends and
12 family.

13 THE WITNESS: I am not getting
14 them involved. I am not giving their
15 names out.

16 MR. INDUSI: We can call the
17 judge.

18 MR. CUOMO: Mr. Calvagno, you
19 are making --

20 (Speaking simultaneously.)

21 THE WITNESS: Listen, I gave
22 my answer. That's my answer. If you
23 want to call the judge and see what
24 he says, you may do that. That's my
25 answer.

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1 R. CALVAGNO II

2 MR. INDUSI: We can call the
3 judge now or you can talk to your
4 client first or --

5 MS. HAMID: Let me talk to
6 him.

7 Off the record.

8 (A discussion was held off the
9 record.)

10 Q. In 2021, who kept their boats in
11 your backyard?

12 A. My neighbor Vinny.

13 Q. What is Vinny's last name?

14 A. I am not sure what it is.

15 Q. What type of boat does Vinny
16 have?

17 A. That year I'm not sure which boat
18 he had. He keeps buying different boats. I'm
19 not sure which one he had that year.

20 Q. Do you know which boat he has
21 this year?

22 A. Anguilla.

23 Q. Is that the boat presently docked
24 in your backyard in 2023?

25 A. Yes.

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1 R. CALVAGNO II

2 Q. Are you collecting any rent to
3 keep the Anguilla in your backyard?

4 A. No, as I said before.

5 Q. Do you know Vinny's first initial
6 of his last name?

7 A. C.

8 Q. And you don't know phonetically
9 how to state his last name?

10 A. No.

11 Q. How long have you known Vinny C?

12 A. Since he moved in.

13 Q. When was that?

14 A. I think he moved there a month or
15 two after me possibly. I don't recall when he
16 moved in. I've known him for a few years.

17 Q. Three or four years?

18 A. A few years.

19 Q. Would that be Vinny Camarta?

20 A. Something like that. Like I
21 said, I am not really sure.

22 Q. What is his address? Where does
23 he live?

24 A. Across the street.

25 Q. Is there only one Vinny that

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1 R. CALVAGNO II

2 lives across the street from you?

3 A. That I know of.

4 Q. He kept a boat, you don't recall
5 which boat, in your backyard in 2021, correct?

6 A. Yes.

7 Q. Who else in 2021 kept a boat in
8 your backyard?

9 A. I think my friend Mark.

10 Q. What is Mark's last name?

11 A. Hanover. Something like that.

12 Q. Did you collect any rent from
13 Mark Hanover in 2021?

14 A. No.

15 Q. What type of boat did he keep in
16 your yard in --

17 A. Sea Ray.

18 Q. What size is the Sea Ray?

19 A. I don't know.

20 Q. What other boats in 2021 did you
21 have in your backyard?

22 A. I don't think any unless I had
23 one. I am not sure if I had mine that year or
24 not.

25 Q. What type of boat did you have?

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1 R. CALVAGNO II

2 A. A Sonic or a Formula.

3 Q. In 2022, what boats were in your
4 backyard?

5 A. The same ones.

6 Q. The same; Vinny Camarta, Mark
7 Hanover and one of your boats?

8 A. Yes.

9 Q. So three boats in 2021, three
10 boats in 2022, and today, sitting here in
11 2023, how many boats do you have in your
12 backyard?

13 A. Four.

14 Q. Who is the fourth boat?

15 A. A friend of mine Justin and a
16 friend of mine Branny.

17 Q. What is Justin's last name?

18 A. Justin. Justin M.

19 Q. Do you know his last name?

20 A. No.

21 Q. When did you meet Justin?

22 A. I've known him for a long time.

23 Q. You don't know his last name?

24 A. Justin M.

25 Q. Do you know his last name --

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1 R. CALVAGNO II

2 A. I am not sure how to pronounce it
3 or how to spell it.

4 Q. Can you sound it out
5 phonetically.

6 A. Mc Macanery (phonetic).
7 Something like that.

8 Q. Where do you know him from?

9 A. We used to be a neighbor years
10 ago.

11 Q. What town was that?

12 A. In Baldwin.

13 Q. Does he still live in Baldwin?

14 A. Not sure.

15 Q. What is Branny's last name?

16 A. I don't know.

17 Q. How do you know Branny?

18 A. We used to work together.

19 Q. Where did you work?

20 A. I'm sorry. I used to purchase
21 things where he worked.

22 Q. Where did he work?

23 A. P.C. Richards.

24 Q. What P.C. Richards?

25 A. I don't know which store he's in

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1 R. CALVAGNO II

2 now. He used to be in Oceanside.

3 Q. So that's the P.C. Richards in
4 Oceanside?

5 A. Yes.

6 Q. Do you communicate with Branny on
7 any kind of basis?

8 A. Once in a while.

9 Q. How do you communicate with him?

10 A. Telephone.

11 Q. Do you know his phone number?

12 A. I am not giving his phone number.

13 I'm sorry.

14 Q. The question is do you have his
15 phone number?

16 A. Not on me.

17 Q. Where do you keep his phone
18 number?

19 A. At my house.

20 Q. Is it written down somewhere at
21 your house?

22 A. Yes.

23 MR. INDUSI: We will leave a
24 blank spot in the transcript to have
25 him fill in his phone number when we

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1 R. CALVAGNO II

2 send the transcript.

3 (INSERT) .

4 Q. How do you communicate with
5 Justin Mc Macanery?

6 A. By telephone.

7 Q. Do you have his phone number with
8 you?

9 A. He just changed it. It's at my
10 house. I don't know the new one.

11 MR. INDUSI: I will leave a
12 blank for his phone number.

13 (INSERT) .

14 Q. How do you communicate with Mark
15 Hanover?

16 A. Telephone.

17 Q. Do you have his phone number with
18 you?

19 A. It's possibly on my cell phone.

20 Q. Why don't you take a minute and
21 check.

22 A. 516-639-0926.

23 Q. What about Vinny Camarta, how do
24 you communicate with him?

25 A. I go to his house or call him on

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2 the phone.

3 Q. Do you have his phone number with
4 you?

5 A. Absolutely. I am sure you have
6 it. 516-858-9820.

7 MR. INDUSI: I'd like to mark
8 this as Plaintiff's 7 for ID.

9 (Plaintiff's Exhibit 7,
10 Photograph, was marked for
11 identification.)

12 Q. I want you to take a look at that
13 three-page document that has been marked as
14 Plaintiff's 7.

15 Is that your house depicted on
16 the first page behind what looks like a
17 Formula?

18 A. Yes.

19 Q. Is that your Formula?

20 A. Yes.

21 Q. So that's registered to you?

22 A. Yes.

23 Q. Do you still have that boat
24 today?

25 A. Yes.

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2 Q. What size boat is that?

3 A. 37.

4 Q. PC?

5 A. Yup.

6 Q. What is the boat directly behind
7 the 37 PC?

8 A. Mark's.

9 Q. What type of boat is that?

10 A. Sea Ray.

11 Q. What boat is directly behind that
12 Blue Hull?

13 A. Vinny's boat. I think that was
14 his Sea Ray.

15 Q. It's a Sea Ray?

16 A. Yes.

17 Q. Is that --

18 A. Sea Ray.

19 Q. There's a date at the bottom,
20 9/3/2021.

21 Are these the boats that were in
22 your backyard on 9/3/2021?

23 A. I cannot verify that date. Those
24 are the boats in my backyard.

25 Q. Today, still, as well?

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1 R. CALVAGNO II

2 A. No, not all of them.

3 Q. Which boats are no longer there?

4 A. The Sea Ray is no longer there.

5 Vinny got another boat.

6 Q. Vinny's boat changed; that's the
7 difference in this shot --

8 A. Yes.

9 Q. -- from 2021 to 2023?

10 A. Like I said, I cannot verify that
11 date.

12 Q. But you had your Formula in 2021?

13 A. I don't remember when I got it.
14 I don't remember.

15 Q. Let's look at page two. There
16 are four boats depicted in this picture,
17 correct?

18 A. Yes.

19 Q. And that's your yard on the
20 right-hand side of the picture?

21 A. Yes.

22 Q. Starting with the forward-most
23 boat, that looks like a Formula without the
24 vinyl --

25 A. Different canvas.

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1 R. CALVAGNO II

2 Q. A different canvas, right?

3 That's your boat --

4 A. Yes.

5 Q. And the boat behind it?

6 A. It looks to be the Sea Ray that's
7 Mark's.

8 Q. And the boat behind that?

9 A. I am not really sure whose boat
10 that is. It could have been a friend that was
11 visiting. I don't know. I really can't see
12 the boat.

13 Q. And the final boat in the rear --

14 A. That's Vinny's.

15 Q. Let's look at the last page. It
16 shows your house in the upper, right-hand
17 corner of the picture, correct?

18 A. Yes.

19 Q. And it shows your Formula,
20 correct?

21 A. Yes.

22 Q. And then there's a boat with a
23 blue cover on the other side of the bulkhead.

24 Whose boat is that?

25 A. That might have been Branny's

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1 R. CALVAGNO II

2 boat I think.

3 Q. Do you know what type of boat
4 that is?

5 A. From looking at the picture, no.

6 Q. Did you ever receive a summons
7 from the Village of Amityville for storing an
8 excess of four boats in your backyard?

9 A. No.

10 Q. Did you ever receive any summons
11 from the Village of Amityville in connection
12 with storing any amount of boats in your
13 backyard?

14 A. No.

15 Q. None of these boats depicted in
16 Plaintiff's 7, it's your testimony, you
17 collected any rent for; is that correct?

18 A. Correct.

19 Q. Did you ever rent out your
20 backyard for any kind of events?

21 A. No.

22 Q. Do you recall in October of 2020
23 having a wedding in your backyard?

24 A. Yes.

25 Q. Whose wedding was that?

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1 R. CALVAGNO II

2 A. My friend.

3 Q. What is your friend's name?

4 A. Elaine.

5 Q. What is Elaine's last name?

6 A. I don't know her married name.

7 Q. Did you attend the wedding?

8 A. Yes. I don't know her husband's
9 last name though.

10 Q. What was her unmarried name, her
11 maiden name?

12 A. Visneros (phonetic).

13 Q. How do you spell that?

14 A. I have no idea.

15 Q. How do you know Elaine?

16 A. My school. High school.

17 Q. Where did you go to high school?

18 A. Baldwin.

19 Q. She went to Baldwin High School
20 as well?

21 A. Yes.

22 Q. Do you know her husband's first
23 name?

24 A. John.

25 Q. Other than marrying Elaine, did

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2 you know John before they were married?

3 A. Yeah.

4 Q. How did you know him?

5 A. Through Elaine.

6 Q. Do you recall how many people
7 were present for that wedding in October of
8 2020?

9 A. No.

10 Q. Do you remember having another
11 event in November of 2020?

12 A. I have parties all the time at my
13 house.

14 Q. And none of those parties did you
15 ever collect any money for using the backyard?

16 A. No, I don't rent my house. I
17 have my own parties and I have friends'
18 parties.

19 Q. Did you ever ask the Village of
20 Amityville for permission to store more boats
21 in your backyard?

22 A. I asked for a permit to store
23 boats in the backyard.

24 Q. What boats were you trying to
25 store in your backyard?

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1 R. CALVAGNO II

2 A. I don't remember what boats they
3 were. I just asked them.

4 Q. Is there a rule that prohibits
5 you from keeping a certain amount of boats in
6 your backyard?

7 A. I think so.

8 Q. Do you recall what the number is?
9 Is it --

10 A. I think it's a number of boats or
11 something. I am not sure. It depends on your
12 bulkhead space. I am not really sure of the
13 calculations.

14 Q. Do you know what happened in
15 connection with that application for a permit
16 to store additional boats in your yard?

17 A. They don't give them out.

18 Q. So it was denied?

19 A. I guess you can say that.

20 Q. Do you recall when that
21 application was filed?

22 A. No.

23 Q. Was it filed this year in 2023?

24 A. I don't remember when it was
25 filed.

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1 R. CALVAGNO II

2 MR. INDUSI: I want to ask you
3 some questions about the
4 counterclaims you made in your
5 answer.

6 I am going to mark this as
7 Plaintiff's 8, which is the verified
8 answer and counterclaims.

9 (Plaintiff's Exhibit 8,
10 Verified Answer and Counterclaims,
11 was marked for identification.)

12 Q. Mr. Calvagno, why don't you take
13 a look at that document. It's a few pages.
14 Take a look at it and look up when you're done
15 reviewing the document.

16 A. Tell me where --

17 Q. Have you ever seen that document
18 before today?

19 A. Yes.

20 Q. When did you see it last?

21 A. When my attorney had me look at
22 it.

23 Q. And you read it all before -- do
24 you recall signing the end of that document?

25 A. Yes.

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1 R. CALVAGNO II

2 Q. And you read it all before you
3 signed it?

4 A. Yes.

5 Q. And everything in there is true
6 to your knowledge, correct?

7 A. Yes.

8 Q. I want to look at counterclaim
9 number two first, which is on page four of 10.

10 A. What number?

11 Q. 14th.

12 A. Okay.

13 Q. How do you prefer to refer to
14 your sexual preference?

15 A. What do you mean?

16 Q. Do you consider yourself openly
17 gay?

18 A. Yes.

19 Q. You've indicated in 14th that the
20 Plaintiffs are morally offended by your
21 homosexuality?

22 A. Yes.

23 Q. How did you come to believe that?

24 A. When I got into an argument with
25 Mr. DeSousa in the street. He called me a

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1 R. CALVAGNO II

2 stupid faggot and told me he's going to fuck
3 me where I breathe.

4 Q. Do you recall when this happened?

5 A. I don't remember the date. It
6 was an argument in the street we had a few
7 years ago.

8 Q. Was anyone else present?

9 A. No, just me and him in the street
10 yelling back and forth. At that point the
11 window cameras -- that's why I put cameras on
12 my house because I don't trust him.

13 Q. Was Diane DeSousa present?

14 A. Not outside. No, she probably
15 was in the house. I don't know if she heard
16 it.

17 Q. And you don't remember what year
18 this was?

19 A. This was a few years ago.

20 Q. Could you take a look and read
21 paragraph 15th.

22 A. Okay.

23 Q. There's a reference to a
24 delivered course of conduct deliberately
25 designed to harass and annoy the Defendant,

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1 R. CALVAGNO II

2 which is you.

3 What course of conduct did the
4 Plaintiffs Diane and Thomas DeSousa engage in?

5 A. Not so much Diane. She's never
6 really done anything. She has always been
7 respectful.

8 Mr. DeSousa used to have a blue
9 Mercedes that he used to start at 3:00 and
10 4:00 in the morning, rev in his driveway, and
11 race up and down the block numerous times and
12 then park it back in his driveway.

13 His grandson had a car like mine,
14 a version down. The grandson went to jail.
15 The car stayed at his house and he used to rev
16 the car pretending it was me so neighbors
17 would think it was me.

18 Q. When was this?

19 A. Probably two to three years ago.

20 Q. Other than your word, do you have
21 any other evidence of these --

22 A. My parents lived at my house at
23 that time. They both witnessed it.

24 Q. What are your parents' names?

25 A. Pauline and Richard Calvagno.

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1 R. CALVAGNO II

2 Also, my boyfriend lives in the house.

3 Anthony Crimi who has witnessed it.

4 Q. He lived in the house now or
5 lived in the house then?

6 A. He's lived in the house since I
7 bought it.

8 Q. And Patrick Karcher, it's in
9 paragraph 12, you indicate he never occupied
10 the --

11 A. No, he's just a friend of mine
12 who cosigned the mortgage for me. He has
13 never lived there, never occupied there. He
14 has nothing to do with the house.

15 Q. The car that Mr. DeSousa's
16 grandson owns that you're referencing --

17 A. Owned.

18 Q. -- is it the same color as yours?

19 A. Yes.

20 Q. What is --

21 A. Black Charger. His was a 392,
22 not a Hellcat.

23 Q. A different exhaust I assume?

24 A. It's pretty much the same
25 exhaust. I notice in my personal opinion that

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1 R. CALVAGNO II

2 the 392 is a little bit louder for some
3 reason. I don't know why.

4 It may be something different in
5 the exhaust. I am not sure what Dodge does.

6 Q. Revving the blue --

7 A. Blue Mercedes.

8 Q. -- and the Charger --

9 A. Yes.

10 Q. -- were the two things that you
11 believe were designed to harass and annoy you?

12 A. Yes, especially at three and four
13 o'clock in the morning when people are
14 sleeping.

15 Q. At that point you did not have a
16 Ring Doorbell?

17 A. No, I did not.

18 Q. And Mr. DeSousa you allege made a
19 comment calling you a faggot that was -- you
20 did not have --

21 A. I had a Ring Doorbell, but I
22 didn't know you couldn't go back and get the
23 footage without paying to store it.

24 Q. You did have the Ring Doorbell at
25 that time but you don't have the video?

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1 R. CALVAGNO II

2 A. Correct.

3 Q. And there are no witnesses to
4 that other than you?

5 A. I don't believe so.

6 Q. You mentioned that Mr. DeSousa's
7 grandson went to jail.

8 Where did that come from, that
9 information?

10 A. I can read the newspaper and read
11 the articles.

12 Q. What is Mr. DeSousa's grandson's
13 name?

14 A. I am not sure of his name. I
15 forgot. It's not really important to me.

16 Q. How did you find out that he went
17 to jail?

18 A. I read it in the paper. I've
19 heard from other people of what he did.

20 Q. What did you hear that he did?

21 A. That he was chasing kids around
22 the park with a taser in Massapequa. Chasing
23 kids dressed as a clown.

24 Q. Did you hear this from anyone
25 specific or was this --

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1 R. CALVAGNO II

2 A. Mr. DeSousa mentioned to my
3 parents in a conversation that his car was
4 there because he went away for a little while.
5 He had gotten in some trouble.

6 Q. To be clear, in 14th, even though
7 it says Plaintiffs plural, it is your
8 testimony that it's Mr. DeSousa and not Diane
9 DeSousa?

10 A. As far as?

11 Q. Well, you say the "Plaintiffs are
12 morally offended by Calvagno's homosexuality."

13 Are you making that statement
14 sitting here today that you believe only Mr.
15 DeSousa is morally offended and not --

16 A. I am sure they are both
17 offended and --

18 Q. In your opinion, the basis that
19 forms that opinion would be what?

20 A. Derogatory remarks Mr. DeSousa
21 has made.

22 Q. In your mind you're inferring his
23 remarks to Diane DeSousa as well?

24 A. Yes.

25 Q. But Diane DeSousa has never been

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1 R. CALVAGNO II

2 anything other than cordial --

3 A. I have never had an argument with
4 her.

5 Q. In paragraph 16, if you could
6 read that.

7 A. Okay.

8 Q. There's quotation marks around
9 the words faggot and homo.

10 A. I read the wrong one. I read 17.

11 Q. 16.

12 A. Okay.

13 Q. You've indicated that Mr. DeSousa
14 called you a faggot in the street --

15 A. Yes.

16 Q. -- according to you a few years
17 back?

18 A. Yes.

19 Q. Did he ever call you a homo?

20 A. He called me a lot of things.

21 Q. When did he call you a homo?

22 A. When we argued in the street.

23 Q. Is that the same day as the
24 comment that you referenced was the one you
25 were referring to in paragraph 14?

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1 R. CALVAGNO II

2 A. I don't know if it was the same
3 day. We have gotten into more than one verbal
4 altercation. I don't know if it was the same
5 day or a different day.

6 Q. And you're saying during these
7 verbal altercations Mr. DeSousa called you a
8 homo?

9 A. Yes.

10 Q. On any of the videos that were
11 turned over did Mr. DeSousa ever call you a
12 homo --

13 A. I don't recall all the videos.

14 Q. Do you have any witnesses or any
15 video evidence that shows Mr. DeSousa using
16 the word faggot or homo?

17 A. As I said, the camera wasn't
18 installed at that point. It was installed. I
19 couldn't go get back to get the footage. I
20 didn't know that when I bought the Ring.

21 Q. Just to be clear, no video
22 evidence of Mr. DeSousa ever calling you a
23 faggot or homo, correct?

24 A. Yes.

25 Q. And no witnesses, other than you,

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1 R. CALVAGNO II

2 of Mr. DeSousa calling you --

3 A. Not that I recall.

4 Q. Would anything refresh your
5 recollection as to witnesses --

6 A. I don't remember.

7 Q. -- that could have -- sitting
8 here today, you don't recall that there are
9 any witnesses that ever could come in and say
10 that Mr. DeSousa called you a faggot or homo?

11 A. I don't remember if anybody was
12 present when the arguments happened.

13 Q. Sitting here today, you're aware
14 of nobody that could come in as a witness to
15 say that Mr. DeSousa did in fact call you a
16 faggot or a homo, correct?

17 A. Yes. I don't remember I just
18 said.

19 Q. In paragraph 17 -- I think you
20 said you read that already --

21 A. Yes.

22 Q. -- we are ahead of the ball on
23 that one.

24 It says here that "Plaintiff has
25 also approached other neighbors," correct?

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1 R. CALVAGNO II

2 A. Yes.

3 Q. When you say the Plaintiff
4 singularly, are you meaning Mr. DeSousa or
5 Diane DeSousa?

6 A. Mr. DeSousa.

7 Q. What other neighbors has Mr.
8 DeSousa approached slandering you with
9 prejudicial slurs?

10 A. All sorts of neighbors.

11 Q. Do you know their names?

12 A. He approached Vinny. He
13 approached Jackie and John trying to get them
14 to sign a petition and they wouldn't sign.

15 Q. What was the petition for?

16 A. Something about my house. They
17 didn't get into the details with me. I don't
18 know what it was. It was about this lawsuit.
19 He wanted them to be part of the lawsuit and
20 they wouldn't be a part of it.

21 Q. Did you see the petition
22 personally?

23 A. No. It may not have been a
24 petition. It could be the wrong word I am
25 using. I don't want to mislead you.

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1 R. CALVAGNO II

2 Q. But it says here in paragraph 17
3 that "the Plaintiff used prejudicial slurs,"
4 correct, "with the neighbors"?

5 A. Yes.

6 Q. Is there anything in the lawsuit
7 here that's prejudicial to you involving
8 slurs?

9 A. No, I am not sure.

10 Q. You have Jackie and John. I just
11 want to go back. You have Vincent Camarta.

12 Who else, to your knowledge -- I
13 mean direct knowledge -- who else has told you
14 that Tom DeSousa has tried to enlist them or
15 used -- or used prejudicial slurs about you?

16 A. Just those two. I don't talk to
17 anybody else.

18 Q. Jackie and John live where on the
19 block?

20 A. Right next door to me.

21 Q. The north side of you?

22 A. The south side of me.

23 Q. They would be across from Mr.
24 DeSousa as well?

25 A. Kind of diagonally.

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1 R. CALVAGNO II

2 Q. The slurs that you claim Mr.
3 DeSousa used with you in the street, sitting
4 here today, you said it was two or three years
5 ago?

6 A. Yes.

7 Q. It would be 2020, 2021?

8 A. When did the lawsuit start? How
9 about that?

10 Q. The lawsuit started in 2021.

11 A. After the lawsuit started.

12 Q. After the lawsuit started?

13 A. Yes.

14 Q. I think the last time we were
15 here you did testify that Mr. DeSousa had come
16 to some parties that you had?

17 A. Yes.

18 Q. Was there ever any claim or
19 complaint about him making any kind of
20 comments about you being openly gay at the
21 those parties?

22 A. No.

23 Q. Did he ever make any prejudicial
24 comments to any of your guests at those
25 parties as it relates --

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1 R. CALVAGNO II

2 A. I have no idea.

3 Q. Did you ever hear that any guests
4 complained that Mr. DeSousa had made any
5 prejudicial comments like faggot or homo to
6 any of your guests?

7 A. The only complaint I got is that
8 he was very creepy and he would stare at
9 people. That was it.

10 Q. But you still nonetheless invited
11 him back multiple times?

12 A. I did not have a problem with him
13 at that point in time. People have their
14 opinion. He's a neighbor. You try and keep
15 the peace with your neighbors.

16 Q. In paragraph 19 you say that
17 "Plaintiffs' complaint is born of their own
18 hate filled prejudice and discrimination,"
19 correct?

20 A. (Nonverbal response.)

21 Q. The complaint that Mr. DeSousa
22 brought against you involves really your car
23 being loud and waking him up early in the
24 morning and loud noises from parties and
25 illegal boats in the backyard, but there's no

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1 R. CALVAGNO II

2 allegations in the complaint based on hate
3 filled prejudice; is that correct?

4 A. I don't know. I guess.

5 Q. In your fourth counterclaim,
6 which is on page five, you claim that the
7 Plaintiffs are guilty of private nuisance.

8 What is your basis for believing
9 that the DeSousas are guilty of private
10 nuisance?

11 MS. HAMID: You're referring
12 to paragraph 23, correct?

13 MR. INDUSI: Correct.

14 Take your time to read it.

15 A. Okay. I'm sorry.

16 What was your question?

17 MR. INDUSI: Can you read back
18 the question.

19 (Requested testimony was
20 read.)

21 A. By harassing the other neighbors,
22 trying to make them be a part of this. It has
23 nothing to do with them. Harassing me not to
24 be able to enjoy the privacy of my own home.

25 Q. Has Mr. DeSousa, to your

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1 R. CALVAGNO II

2 knowledge, done anything to intrude on the
3 privacy on the inside of your home?

4 A. Nothing inside.

5 Q. In your fifth counterclaim you
6 indicate on paragraph 25 that "Plaintiffs have
7 harassed and menaced you." They followed you
8 to your place of employment where "he",
9 presumably Mr. DeSousa, "screamed obscenities
10 meant to shame and intimidate the Defendant
11 and also to threaten his employment."

12 I want to ask you some questions
13 about paragraph 25.

14 A. Okay.

15 Q. You indicated before you worked
16 at, not AAA1, but AAAA1 Towing, correct?

17 A. Yes.

18 Q. Is that the employment that you
19 are referencing to here?

20 A. That's where I have always
21 worked, yes.

22 Q. You say here "Plaintiffs", but
23 ultimately he screamed obscenities.

24 Is it fair to say that it's your
25 opinion in paragraph 25 that you're talking

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1 R. CALVAGNO II

2 about Mr. DeSousa and not Diane DeSousa?

3 A. Yes.

4 Q. When you say "he followed you to
5 your place of employment," you mean AAAA1
6 Towing, correct?

7 A. That's where I was going, yes.

8 Q. When you say he was following
9 you, I assume he wasn't following you on foot
10 in your opinion --

11 A. No.

12 Q. -- following you in a vehicle?

13 A. Yes.

14 Q. What vehicle do you claim he's
15 following you in?

16 A. When he had his Jaguar.

17 Q. What type of Jaguar?

18 A. F-Pace SUV.

19 Q. How do you know that he was
20 following you?

21 A. When I pulled out of my driveway,
22 he pulled out of his driveway and I saw him in
23 my rearview mirror.

24 Q. And you saw him in the rearview
25 mirror the whole time from --

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1 R. CALVAGNO II

2 A. We didn't make it all the way to
3 my job. He followed me on my way to work.

4 Q. When did, in your mind, the
5 pursuit terminate?

6 A. It was so long ago. Probably
7 more than halfway there maybe. I don't recall
8 the whole thing.

9 Q. Do you remember the day that this
10 happened?

11 A. No.

12 Q. Do you remember the year that it
13 happened?

14 A. Again, after this lawsuit
15 commenced. I don't know.

16 Q. So sometime after --

17 A. Sometime in '21 or '22. It was
18 not '23, I can tell you that.

19 Q. Do you remember what day of the
20 week it was?

21 A. No, I don't remember.

22 Q. Did you call the police?

23 A. No.

24 Q. You say that he harassed and
25 menaced you.

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1 R. CALVAGNO II

2 How did he harass and menace you?

3 A. Tailgating me. Flashing his
4 lights at me.

5 Q. This is all that same day; this
6 is one occasion we are talking about?

7 A. One occasion, yes.

8 Q. You're saying during that one
9 occasion he tailgated you and flashed his
10 lights at you?

11 A. Yes.

12 Q. It also indicates here he
13 followed you to your place of employment where
14 he screamed obscenities.

15 Your testimony here today is that
16 he did not actually follow you to your place
17 of employment?

18 A. He did not -- no, I drove too
19 fast and he couldn't catch me pretty much.

20 Q. What obscenities did he scream to
21 you on that day?

22 A. Fuck you. Mother fucker.

23 Q. How did you hear him scream those
24 obscenities if you're in the car in front of
25 him?

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1 R. CALVAGNO II

2 A. My windows were down.

3 Q. Did he pull up next to you at a
4 light?

5 A. He was stopped behind me.

6 Q. And you heard him yelling from
7 behind you with your windows open at a red
8 light?

9 A. Yes.

10 Q. In other words, he didn't pull up
11 next to you and look out the window and say --

12 A. No.

13 Q. -- fuck you. He was still behind
14 you and you heard him screaming fuck you from
15 the car behind you?

16 A. Yes.

17 Q. You don't recall sitting here
18 today when that alleged pursuit terminated?

19 A. I don't remember what day it was.
20 No.

21 Q. Where that alleged pursuit
22 terminated? In other words, was it on the
23 Meadowbrook, was it on Merrick Road, was it
24 on --

25 A. Southern State or Main Street. I

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1 R. CALVAGNO II

2 am not sure which way I took. It all depends
3 on traffic.

4 Q. At some point you looked in your
5 rearview mirror and the Jaguar was not there?

6 A. Correct.

7 Q. Did you call anyone at the time
8 before, at any time before, the pursuit
9 terminate to report that your neighbor Mr.
10 DeSousa was following you?

11 A. No.

12 Q. Did you take any photographs or
13 videos or recordings of Mr. DeSousa on that
14 day when you claim he followed you?

15 A. No. I can't use my camera when I
16 am driving the car.

17 Q. You can, right, but you're not
18 supposed to.

19 I want to ask you some questions
20 about paragraph 26, which is on the next page.

21 A. Okay.

22 Q. Here you allege that the
23 "harassing, annoying and menacing behavior of
24 the Plaintiff includes the Plaintiff waiting
25 outside your home in the morning," correct?

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1 R. CALVAGNO II

2 A. Yes.

3 Q. Just to be clear, Mr. DeSousa
4 lives across the street from your home
5 obviously, right?

6 A. Yes.

7 Q. He's arguably in front of his
8 house just as much as he's in front of your
9 house, correct?

10 A. Okay.

11 Q. Is that fair to say?

12 A. Okay.

13 Q. Shouting obscenities and threats
14 as you exit your home and leave for work.

15 Do you recall any specific days
16 that this occurred?

17 A. We submitted videos of that.

18 Q. The videos depict what you
19 believe to be this claim here, correct?

20 A. Part of it.

21 Q. Were there other occasions that
22 Mr. DeSousa was shouting obscenities that are
23 not depicted in the videos?

24 A. There are other occasions before.
25 Like I said before, I had no access to the

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2 footage of the cameras.

3 Q. How many different times that are
4 not captured on video did Mr. DeSousa yell and
5 shout obscenities at you?

6 A. Maybe two or three. I don't
7 remember.

8 Q. Did you shout obscenities back?

9 A. Probably.

10 Q. Do you remember when those
11 incidents occurred?

12 A. No.

13 Q. Prior to the lawsuit or after the
14 lawsuit?

15 A. Everything was after the lawsuit.
16 Prior to me being served the papers we never
17 had any negative interactions. Any questions
18 were after this lawsuit.

19 MR. CUOMO: Let's take five
20 minutes.

21 (A recess was taken.)

22 Q. I just want to ask a few more
23 questions. On paragraph 25. I'm sorry you
24 indicated that Mr. DeSousa threatened your
25 employment?

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1 R. CALVAGNO II

2 A. Yes.

3 Q. I know in prior questions you've
4 indicated that your employment has nothing to
5 do with this, but you're alleging that
6 Mr. DeSousa threatened your employment.

7 Is that a claim you're still
8 making today?

9 A. Yes.

10 Q. How did Mr. DeSousa threaten your
11 employment?

12 A. Now you're subpoenaing the
13 dealership's manager and service director. It
14 threatens the relationship I have with my job
15 with them.

16 Q. When was that subpoena issued?

17 A. I don't remember. Last month,
18 two months. Something like that. It wasn't
19 issued to me. I don't know.

20 Q. This answer was and counterclaim
21 was filed January 27, 2021, correct?

22 A. Yes.

23 Q. When you say Mr. DeSousa
24 threatened your employment back in 2021,
25 you're referring to events that occurred at

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1 R. CALVAGNO II

2 least prior to January --

3 A. It may have been -- it shouldn't
4 have been in there at that point in time.

5 Q. So Mr. DeSousa, as of in your
6 opinion, as of the time of the filing of this
7 did not threaten your employment in anyway,
8 correct?

9 A. Yes. Correct.

10 Q. You just testified that there was
11 a subpoena served on a customer?

12 A. No, the service director of the
13 Westbury Jeep dealership.

14 Q. How did you come to find out
15 about that subpoena?

16 A. I got an e-mail from my attorney.

17 Q. When was that subpoena to your
18 knowledge served?

19 A. Within the past two months I
20 think I got an e-mail from my attorney.

21 Q. Did you have any conversations
22 with the service director of Westbury about
23 that subpoena?

24 A. No.

25 Q. I want to go back to paragraph 26

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2 on page six of 10.

3 It indicates that Mr. DeSousa
4 parked his car in front of Defendant's
5 driveway to block Defendant from leaving for
6 work.

7 When did that happen?

8 A. I don't remember the date.

9 Q. Do you know what car blocked your
10 driveway?

11 A. The Jaguar.

12 Q. The F-Pace?

13 A. I think it was an F-Pace. Don't
14 quote me on that. A Jaguar SUV --

15 Q. Do you recall the color?

16 A. It was dark. Dark green, dark
17 black.

18 Q. Is the blocking the driveway
19 captured on any surveillance cameras or Ring
20 cameras?

21 A. I don't believe so. I don't
22 think I had cameras installed yet.

23 Q. Are there any witnesses
24 establishing that Mr. DeSousa was blocking
25 your driveway?

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2 A. Anthony may have been a witness.

3 I don't recall.

4 Q. That's Anthony Crimi, correct?

5 A. Yes.

6 Q. You say you were prevented from
7 leaving for work.

8 Were you able to ultimately get
9 to work on the day that you claim this
10 happened?

11 A. Yes, I went over the curb to get
12 out of my driveway. I might have called the
13 police that day and had a police report filed.
14 I know there were numerous police reports
15 filed that I have.

16 Q. How many police reports did you
17 file?

18 A. Three or four.

19 Q. Who did you file them with?

20 A. Amityville Police Department.

21 Q. Did they come to the house and
22 take a report or did they take it over phone?

23 A. They came to the house.

24 Q. Do you recall the police
25 officers' names?

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1 R. CALVAGNO II

2 A. No.

3 Q. Do you have those reports?

4 A. Not on me.

5 MR. INDUSI: I will just call
6 for production of any police reports.

7 MS. HAMID: I think they have
8 been produced.

9 MR. INDUSI: I will call --

10 THE WITNESS: I believe they
11 were submitted. I may have them in
12 my e-mail possibly when I submitted
13 them to my attorney.

14 MR. CUOMO: I don't believe
15 they are in there.

16 MR. INDUSI: I want to ask you
17 some questions. You made a claim
18 before about surveillance cameras
19 being installed.

20 I am going to ask that we mark
21 a receipt that I think was turned
22 over in discovery.

23 That would be Plaintiff's 9.

24 (Plaintiff's Exhibit 9,
25 Receipt, was marked for

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1 R. CALVAGNO II

2 identification.)

3 Q. What is this document?

4 A. It's a receipt for the cameras
5 that I put in my house.

6 Q. Do you remember the date that you
7 ordered those cameras?

8 A. April 21st.

9 Q. Were these cameras inside or
10 outside your house?

11 A. Outside.

12 Q. You claim you had to put these in
13 as a result of Mr. DeSousa; is that the claim?

14 A. Yeah.

15 Q. How many cameras did you get?

16 A. Seven.

17 Q. Where are these cameras
18 physically located on your house?

19 A. All around the outside of the
20 house.

21 Q. Front, back --

22 A. Front, back, sides.

23 Q. Since installing these cameras,
24 these cameras have not depicted or formed the
25 basis of any claims that you're making against

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2 Mr. DeSousa, correct?

3 A. They show the video of him doing
4 what I am claiming, yes.

5 Q. Were those Ring cameras or
6 surveillance?

7 A. Both.

8 MR. INDUSI: I don't know that
9 we've seen surveillance footage. To
10 the extent that there is footage from
11 these cameras I will call for
12 production as well.

13 I think most of what we got
14 were Ring cameras.

15 THE WITNESS: Most of them
16 might be Ring because there were
17 duplicates. It was easier to get the
18 footage from the Ring than it is from
19 the system.

20 MR. CUOMO: I think every
21 single video that we have is the
22 front door.

23 MR. INDUSI: To the extent you
24 have video footage that are captured
25 on these cameras, I am calling for

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2 the production of them, whether you
3 think they are duplicative or not.

4 THE WITNESS: I cannot go back
5 past a month.

6 MR. INDUSI: To the extent
7 they are in your possession. As I
8 said, if they are not in your
9 possession I cannot call for
10 production.

11 To the extent you are in
12 possession of them, I call for
13 production of them.

14 MS. HAMID: Okay.

15 Q. You testified earlier in support
16 of your claims and defenses there are a few
17 witnesses. I just want to make sure we
18 understand who they are.

19 A. Witnesses for what?

20 Q. Witnesses that support your
21 claims or defenses. You've made allegations
22 that Mr. DeSousa tried to employee neighbors.

23 You've indicated the neighbors
24 are Vincent Camarta and Jackie and John, if I
25 am remembering, correct?

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2 A. Yes.

3 Q. That these neighbors would be
4 witnesses to Mr. DeSousa making statements
5 about your sexual preference?

6 A. I am not calling them witnesses.
7 I am not involving them.

8 Q. Right, but you're claiming that
9 Mr. DeSousa made comments about your sexual
10 preference to them, correct?

11 A. Yes, he made comments to them. I
12 am not sure the exact wording he used. They
13 told me he made derogatory comments.

14 Q. They told you that he made
15 derogatory comments and your partner Anthony
16 Crimi as well as a witness?

17 A. Yes.

18 Q. Your parents also you've
19 mentioned were witnesses to some claims,
20 correct?

21 A. Yes.

22 Q. Other than your parents, Anthony
23 Crimi and the neighbors, is there anyone else
24 that is a witness to any of the claims or
25 defenses?

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2 A. Not that I can think of.

3 MR. INDUSI: I don't have
4 anything else at this time.

5 I would like to see the police
6 reports as there may very well be
7 some questions that derive from those
8 police reports.

9 I just ask the deposition,
10 until I get them and receive them,
11 that the deposition remain open.

12 (Speaking simultaneously.)

13 MR. CUOMO: Paper copy -- do
14 you have a copy of it with you?

15 MS. HAMID: They were sent. I
16 sent you police reports dated
17 November 4, 2020, and March 18, 2021.

18 I sent them around May 18,
19 2021.

20 MR. CUOMO: Do you have a copy
21 of those?

22 MS. HAMID: This is an exhibit
23 we had marked with Mr. DeSousa.

24 MR. INDUSI: I can ask some
25 questions right now.

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1 R. CALVAGNO II

2 Q. I just want to ask you some
3 questions. I am looking at two police
4 reports --

5 A. Can I see them --

6 MR. CUOMO: Off the record.

7 (A discussion was held off the
8 record.)

9 MR. INDUSI: I am marking this
10 two-page exhibit as Plaintiff's 10.

11 (Plaintiff's Exhibit 10,
12 Police Reports, were marked for
13 identification.)

14 Q. Take a look at those two reports
15 and look up when you are done.

16 A. Which one should I look at first?

17 Q. Whatever you want to look at.

18 A. Mine is dated on top 3/18.
19 That's the first one I got.

20 Q. Look at the second one.

21 A. The second one is dated 11/12.

22 Q. These are two police reports that
23 both seem to be made with the Amityville
24 Police Department.

25 Did you make any other reports to

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2 the Amityville Police Department?

3 A. There might be one more.

4 MR. INDUSI: I call for
5 production of the third report if it
6 exists.

7 MS. HAMID: Okay.

8 Q. Both of these reports, if I am
9 correct, look like you're calling to report
10 that Mr. DeSousa is videotaping you; is that
11 correct?

12 A. Yes. There is actually one more
13 report that is not in here.

14 MR. INDUSI: We will get that
15 report. You will provide that to
16 your attorney and your attorney will
17 provide that to us.

18 Q. These two reports, one is dated
19 November 4, 2020, and one is dated March 18,
20 2021.

21 These reports solely complain
22 that Mr. DeSousa is videotaping you, correct?

23 A. Videotaping and yelling, yeah.

24 Q. And you yell back, correct?

25 A. Yes.

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2 Q. In some instances I think we've
3 actually established that you start the
4 yelling, correct?

5 A. I don't know if I start it. I am
6 responding back to his comments. Yes,
7 defending myself.

8 Q. But you testified earlier there
9 was a police report about him blocking the
10 driveway. That's the one that's --

11 A. I wasn't sure if the cops were
12 called that day. The missing report is
13 actually in front of headquarters when you
14 were there after we left the hearing for Vinny
15 for his garage.

16 There was a fight in front of
17 headquarters and the police escorted me home
18 and wrote a report. You were outside of
19 Amityville Village Hall when it all happened.

20 MR. CUOMO: It was. That was
21 the day you said fuck you, Cuomo.

22 THE WITNESS: Yes.

23 MR. CUOMO: I don't recall --

24 THE WITNESS: There was a
25 police report filed on that too.

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R. CALVAGNO II

MR. CUOMO: If you have it,
produce it.

MR. INDUSI: I will just
reserve as to that final report. I
think that's it.

(Time noted: 12:39 p.m.)

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A C K N O W L E D G M E N T

STATE OF NEW YORK)
 : ss
COUNTY OF)

I, RICHARD A. CALVAGNO II, hereby
certify that I have read the transcript of my
testimony taken under oath in my deposition of
August 1, 2023; that the transcript is a true,
complete and correct record of my testimony,
and that the answers on the record as given by
me are true and correct.

RICHARD A. CALVAGNO II

Signed and subscribed to before
me, this day
of , 2023.

Notary Public, State of New York

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-----I N D E X-----

WITNESS	EXAMINATION BY	PAGE
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RICHARD A. CALVAGNO II	MR. INDUSI	125
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-----DOCUMENT REQUEST-----

PAGE:

172	Police reports
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174	Surveillance Footage
-----	----------------------

179	Third Police Report
-----	---------------------

-----INFORMATION TO BE FURNISHED-----

PAGE:

135	Branny's Phone Number
-----	-----------------------

135	Justin's Phone Number
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-----EXHIBITS-----

PLAINTIFF'S	FOR I.D.
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7	Photograph	136
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8	Answer/Counterclaim	144
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9	Receipt	172
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10	Police Reports	178
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(Counsel retained exhibits.)

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C E R T I F I C A T E

STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

I, ELIZABETH SCHEIBE, a Notary
Public within and for the State of
New York, do hereby certify:

That RICHARD A. CALVAGNO II,
the witness whose deposition is
hereinbefore set forth, was duly
sworn by me and that such deposition
is a true record of the testimony
given by such witness.

I further certify that I am not
related to any of the parties to this
action by blood or marriage; and that I am
in no way interested in the outcome of
this matter.

IN WITNESS WHEREOF, I have
hereunto set my hand this 1st day of
August, 2023.

Elizabeth Scheibe

ELIZABETH SCHEIBE



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*** ERRATA SHEET ***

REALTIME REPORTING, INC.

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NAME OF CASE: DESOUSA v. CALVAGNO

DATE OF DEPOSITION: 8/1/2023

NAME OF WITNESS: RICHARD CALVAGNO II

PAGE	LINE	FROM	TO	REASON
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RICHARD A. CALVAGNO II

SUBSCRIBED AND SWORN BEFORE ME THIS _____ DAY OF
_____, 2023.

(NOTARY PUBLIC) MY COMMISSION EXPIRES:

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